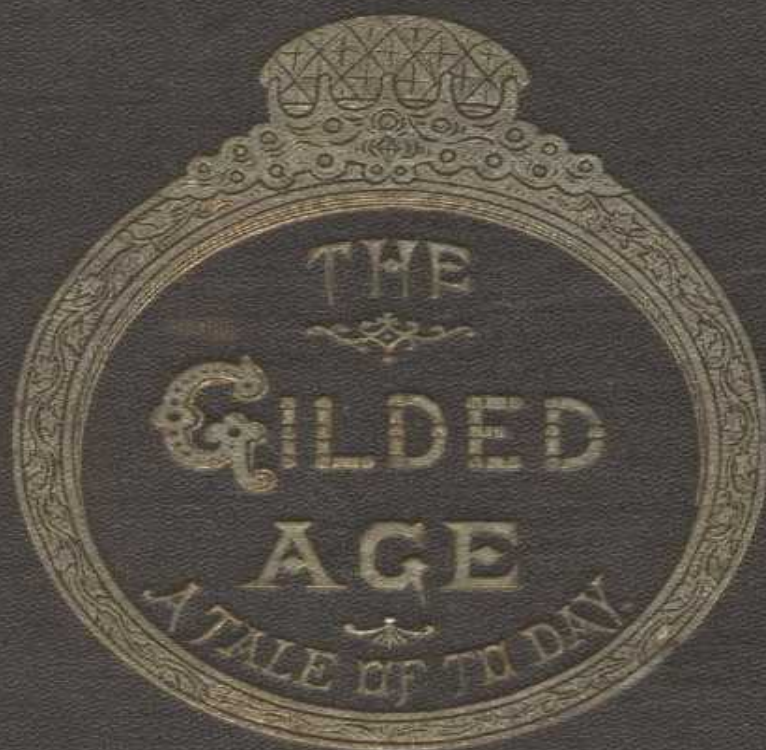
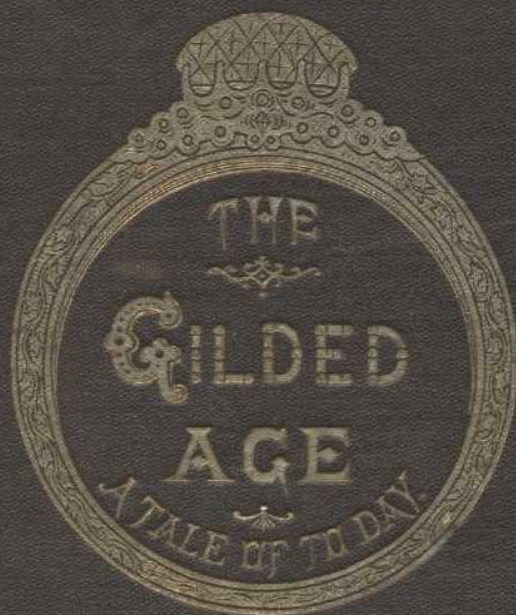




THE
GILDED
AGE
A TALE OF TO DAY.



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AGE, PART 6. ***

THE GILDED AGE

A Tale of Today

by Mark Twain and Charles Dudley Warner

1873

Part 6.



THE
GILDED AGE

A TALE OF TO-DAY

BY
MARK TWAIN
(SAMUEL L. CLEMENS)
AUTHOR OF "INNOCENTS ABROAD," "TOUGHING IT," ETC.
AND
CHARLES DUDLEY WARNER
AUTHOR OF "MY SUMMER IN A GARDEN," "BACK LOG STUDIES," ETC.

FULLY ILLUSTRATED FROM NEW DESIGNS
BY HOPPIN, STEPHENS, WILLIAMS, WHITE, ETC., ETC.

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1874.

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CHAPTER XLVI.

Philip left the capitol and walked up Pennsylvania Avenue in company with Senator Dilworthy. It was a bright spring morning, the air was soft and inspiring; in the deepening wayside green, the pink flush of the blossoming peach trees, the soft suffusion on the heights of Arlington, and the breath of the warm south wind was apparent, the annual miracle of the resurrection of the earth.

The Senator took off his hat and seemed to open his soul to the sweet influences of the morning. After the heat and noise of the chamber, under its dull gas-illuminated glass canopy, and the all night struggle of passion and feverish excitement there, the open, tranquil world seemed like Heaven. The Senator was not in an exultant mood, but rather in a condition of holy joy, befitting a Christian statesman whose benevolent plans Providence has made its own and stamped with approval. The great battle had been fought, but the measure had still to encounter the scrutiny of the Senate, and Providence sometimes acts differently in the two Houses. Still the Senator was tranquil, for he knew that there is an esprit de corps in the Senate which does not exist in the House, the effect of which is to make the members complaisant towards the projects of each other, and to extend a mutual aid which in a more vulgar body would be called "log-rolling."



"It is, under Providence, a good night's work, Mr. Sterling. The government has founded an institution which will remove half the difficulty from the southern problem. And it is a good thing for the Hawkins heirs, a very good thing. Laura will be almost a millionaire."

"Do you think, Mr. Dilworthy, that the Hawkineses will get much of the money?" asked Philip innocently, remembering the fate of the Columbus River appropriation.

The Senator looked at his companion scrutinizingly for a moment to see if he meant any thing personal, and then replied,

"Undoubtedly, undoubtedly. I have had their interests greatly at heart. There will of course be a few expenses, but the widow and orphans will realize all that Mr. Hawkins, dreamed of for them."

The birds were singing as they crossed the Presidential Square, now bright with its green turf and tender foliage. After the two had gained the steps of the Senator's house they stood a moment, looking upon the lovely prospect:

"It is like the peace of God," said the Senator devoutly.

Entering the house, the Senator called a servant and said, "Tell Miss Laura that we are waiting to see her. I ought to have sent a messenger on horseback half an hour ago," he added to Philip, "she will be transported with our victory. You must stop to breakfast, and see the excitement." The servant soon came back, with a wondering look and reported,

"Miss Laura ain't dah, sah. I reckon she hain't been dah all night!"



The Senator and Philip both started up. In Laura's room there were the marks of a confused and hasty departure, drawers half open, little articles strewn on the floor. The bed had not been disturbed. Upon inquiry it appeared that Laura had not been at dinner, excusing herself to Mrs. Dilworthy on the plea of a violent headache; that she made a request to the servants that she might not be disturbed.

The Senator was astounded. Philip thought at once of Col. Selby. Could Laura have run away with him? The Senator thought not. In fact it could not be. Gen. Leffenwell, the member from New Orleans, had casually told him at the house last night that Selby and his family went to New York yesterday morning and were to sail for Europe to-day.

Philip had another idea which, he did not mention. He seized his hat, and saying that he would go and see what he could learn, ran to the lodgings of Harry; whom he had not seen since yesterday afternoon, when he left him to go to the House.

Harry was not in. He had gone out with a hand-bag before six o'clock yesterday, saying that he had to go to New York, but should return next day. In Harry's-room on the table Philip found this note:

"Dear Mr. Brierly:—Can you meet me at the six o'clock train, and be my escort to New York? I have to go about this University bill, the vote of an absent member we must have here, Senator Dilworthy cannot go.

Yours, L. H."

"Confound it," said Phillip, "the noodle has fallen into her trap. And she promised she would let him alone."

He only stopped to send a note to Senator Dilworthy, telling him what he had found, and that he should go at once to New York, and then hastened to the railway station. He had to wait an hour for a train, and when it did start it seemed to go at a snail's pace.

Philip was devoured with anxiety. Where could they, have gone? What was Laura's object in taking Harry? Had the flight anything to do with Selby? Would Harry be such a fool as to be dragged into some public scandal?

It seemed as if the train would never reach Baltimore. Then there was a long delay at Havre de Grace. A hot box had to be cooled at Wilmington. Would it never get on? Only in passing around the city of Philadelphia did the train not seem to go slow. Philip stood upon the platform and watched for the Boltons' house, fancied he could distinguish its roof among the trees, and wondered how Ruth would feel if she knew he was so near her.

Then came Jersey, everlasting Jersey, stupid irritating Jersey, where the passengers are always asking which line they are on, and where they are to come out, and whether they have yet reached Elizabeth. Launched into Jersey, one has a vague notion that he is on many lines and no one in particular, and that he is liable at any moment to come to Elizabeth. He has no notion what Elizabeth is, and always resolves that the next time he goes that way, he will look out of the window and see what it is like; but he never does. Or if he does, he probably finds that it is Princeton or something of that sort. He gets annoyed, and never can see the use of having different names for stations in Jersey. By and by, there is Newark, three or four Newarks apparently; then marshes; then long rock cuttings devoted to the advertisements of 'patent medicines and ready-made, clothing, and New York tonics for Jersey agues, and Jersey City is reached.

On the ferry-boat Philip bought an evening paper from a boy crying "'Ere's the Evening Gram, all about the murder," and with breathless haste—ran his eyes over the following:

SHOCKING MURDER!!!

TRAGEDY IN HIGH LIFE!!

A BEAUTIFUL WOMAN SHOOTS A DISTINGUISHED CONFEDERATE SOLDIER AT THE SOUTHERN HOTEL!!!

JEALOUSY THE CAUSE!!!

This morning occurred another of those shocking murders which have become the almost daily food of the newspapers, the direct result of the socialistic doctrines and woman's rights agitations, which have made every woman the avenger of her own wrongs, and all society the hunting ground for her victims.

About nine o'clock a lady deliberately shot a man dead in the public parlor of the Southern Hotel, coolly remarking, as she threw down her revolver and permitted herself to be taken into custody, "He brought it on himself." Our reporters were immediately dispatched to the scene of the tragedy, and gathered the following particulars.

Yesterday afternoon arrived at the hotel from Washington, Col. George Selby and family, who had taken passage and were to sail at noon to-day in the steamer Scotia for England. The Colonel was a handsome man about forty, a gentleman of wealth and high social position, a resident of New Orleans. He served with distinction in the confederate army, and received a wound in the leg from which he has never entirely recovered, being obliged to use a cane in locomotion.

This morning at about nine o'clock, a lady, accompanied by a gentleman, called at the office of the hotel and asked for Col. Selby. The Colonel was at breakfast. Would the clerk tell him that a lady and gentleman wished to see him for a moment in the parlor? The clerk says that the gentleman asked her, "What do you want to see him for?" and that she replied, "He is going to Europe, and I ought to just say good by."

Col. Selby was informed; and the lady and gentleman were shown to the parlor, in which were at the time three or four other persons. Five minutes

after two shots were fired in quick succession, and there was a rush to the parlor from which the reports came.

Col. Selby was found lying on the floor, bleeding, but not dead. Two gentlemen, who had just come in, had seized the lady, who made no resistance, and she was at once given in charge of a police officer who arrived. The persons who were in the parlor agree substantially as to what occurred. They had happened to be looking towards the door when the man—Col. Selby—entered with his cane, and they looked at him, because he stopped as if surprised and frightened, and made a backward movement. At the same moment the lady in the bonnet advanced towards him and said something like, "George, will you go with me?" He replied, throwing up his hand and retreating, "My God I can't, don't fire," and the next instants two shots were heard and he fell. The lady appeared to be beside herself with rage or excitement, and trembled very much when the gentlemen took hold of her; it was to them she said, "He brought it on himself."

Col. Selby was carried at once to his room and Dr. Puffer, the eminent surgeon was sent for. It was found that he was shot through the breast and through the abdomen. Other aid was summoned, but the wounds were mortal, and Col Selby expired in an hour, in pain, but his mind was clear to the last and he made a full deposition. The substance of it was that his murderess is a Miss Laura Hawkins, whom he had known at Washington as a lobbyist and had some business with her. She had followed him with her attentions and solicitations, and had endeavored to make him desert his wife and go to Europe with her. When he resisted and avoided her she had threatened him. Only the day before he left Washington she had declared that he should never go out of the city alive without her.

It seems to have been a deliberate and premeditated murder, the woman following him to Washington on purpose to commit it.

We learn that the, murderess, who is a woman of dazzling and transcendent beauty and about twenty six or seven, is a niece of Senator Dilworthy at whose house she has been spending the winter. She belongs to a high Southern family, and has the reputation of being an heiress. Like some other great beauties and belles in Washington however there have been whispers that she had something to do with the lobby. If we mistake not we have heard her name mentioned in connection with the sale of the Tennessee Lands to the Knobs University, the bill for which passed the House last night.

Her companion is Mr. Harry Brierly, a New York dandy, who has been in Washington. His connection with her and with this tragedy is not known, but he was also taken into custody, and will be detained at least as a witness.

P. S. One of the persons present in the parlor says that after Laura Hawkins had fired twice, she turned the pistol towards herself, but that Brierly sprang and caught it from her hand, and that it was he who threw it on the floor.

Further particulars with full biographies of all the parties in our next edition.

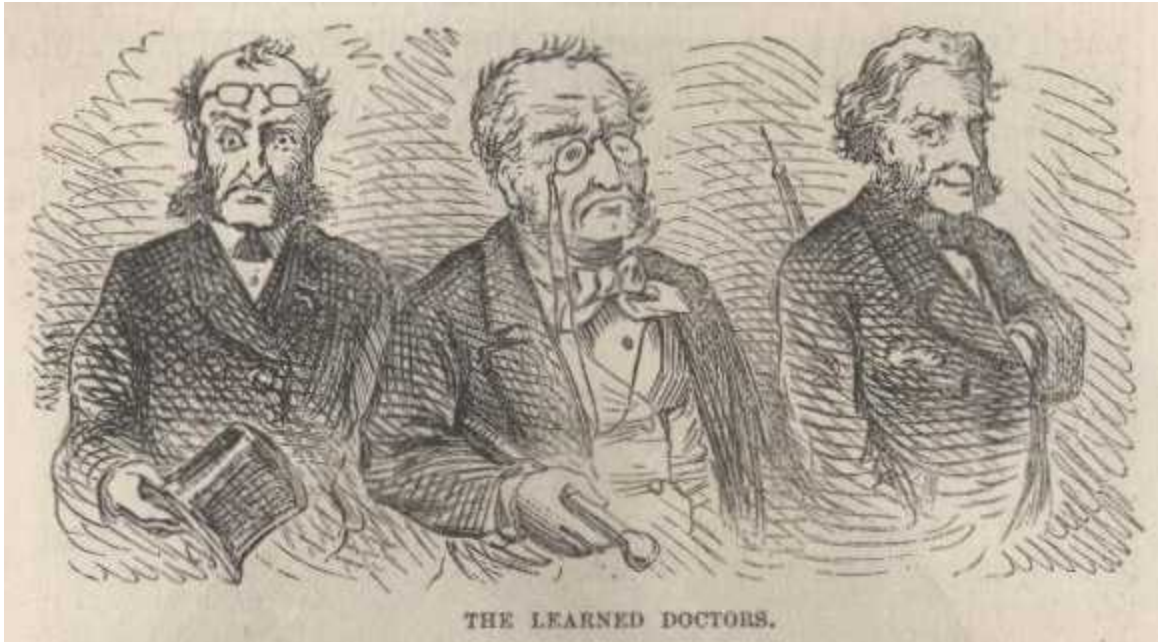
Philip hastened at once to the Southern Hotel, where he found still a great state of excitement, and a thousand different and exaggerated stories passing from mouth to mouth. The witnesses of the event had told it over so many time that they had worked it up into a most dramatic scene, and embellished it with whatever could heighten its awfulness. Outsiders had taken up invention also. The Colonel's wife had gone insane, they said. The children had rushed into the parlor and rolled themselves in their father's blood. The hotel clerk said that he noticed there was murder in the woman's eye when he saw her. A person who had met the woman on the stairs felt a creeping sensation. Some thought Brierly was an accomplice, and that he had set the woman on to kill his rival. Some said the woman showed the calmness and indifference of insanity.



AS THE WITNESSES DESCRIBED IT.

Philip learned that Harry and Laura had both been taken to the city prison, and he went there; but he was not admitted. Not being a newspaper reporter, he could not see either of them that night; but the officer questioned him suspiciously and asked him who he was. He might perhaps see Brierly in the morning.

The latest editions of the evening papers had the result of the inquest. It was a plain enough case for the jury, but they sat over it a long time, listening to the wrangling of the physicians. Dr. Puffer insisted that the man died from the effects of the wound in the chest. Dr. Dobb as strongly insisted that the wound in the abdomen caused death. Dr. Golightly suggested that in his opinion death ensued from a complication of the two wounds and perhaps other causes. He examined the table waiter, as to whether Col. Selby ate any breakfast, and what he ate, and if he had any appetite.



The jury finally threw themselves back upon the indisputable fact that Selby was dead, that either wound would have killed him (admitted by the doctors), and rendered a verdict that he died from pistol-shot wounds inflicted by a pistol in the hands of Laura Hawkins.

The morning papers blazed with big type, and overflowed with details of the murder. The accounts in the evening papers were only the premonitory drops to this mighty shower. The scene was dramatically worked up in column after column. There were sketches, biographical and historical. There were long "specials" from Washington, giving a full history of Laura's career there, with the names of men with whom she was said to be intimate, a description of Senator Dilworthy's residence and of his family, and of Laura's room in his house, and a sketch of the Senator's appearance and what he said. There was a great deal about her beauty, her accomplishments and her brilliant position in society, and her doubtful position in society. There was also an interview with Col. Sellers and another with Washington Hawkins, the brother of the murderess. One journal had a long dispatch from Hawkeye, reporting the excitement in that quiet village and the reception of the awful intelligence.

All the parties had been "interviewed." There were reports of conversations with the clerk at the hotel; with the call-boy; with the waiter at table with all the witnesses, with the policeman, with the landlord (who wanted it understood that nothing of that sort had ever happened in his house before, although it had always been frequented by the best Southern society,) and with Mrs. Col. Selby. There were diagrams illustrating the scene of the shooting, and views of the hotel and street, and portraits of the parties.



There were three minute and different statements from the doctors about the wounds, so technically worded that nobody could understand them. Harry and Laura had also been "interviewed" and there was a statement from Philip himself, which a reporter had knocked him up out of bed at midnight to give, though how he found him, Philip never could conjecture.

What some of the journals lacked in suitable length for the occasion, they made up in encyclopaedic information about other similar murders and shootings.

The statement from Laura was not full, in fact it was fragmentary, and consisted of nine parts of, the reporter's valuable observations to one of Laura's, and it was, as the reporter significantly remarked, "incoherent", but it appeared that Laura claimed to be Selby's wife, or to have been his wife, that he had deserted her and betrayed her, and that she was going to follow him to Europe. When the reporter asked:

"What made you shoot him Miss. Hawkins?"

Laura's only reply was, very simply,

"Did I shoot him? Do they say I shot him?". And she would say no more.

The news of the murder was made the excitement of the day. Talk of it filled the town. The facts reported were scrutinized, the standing of the parties was discussed, the dozen different theories of the motive, broached in the newspapers, were disputed over.

During the night subtle electricity had carried the tale over all the wires of the continent and under the sea; and in all villages and towns of the Union, from the Atlantic to the territories, and away up and down the Pacific slope, and as far as London and Paris and Berlin, that morning the name of Laura Hawkins was spoken by millions and millions of people, while the owner of it—the sweet child of years ago, the beautiful queen of Washington drawing rooms—sat shivering on her cot-bed in the darkness of a damp cell in the Tombs.

CHAPTER XLVII.

Philip's first effort was to get Harry out of the Tombs. He gained permission to see him, in the presence of an officer, during the day, and he found that hero very much cast down.

"I never intended to come to such a place as this, old fellow," he said to Philip; "it's no place for a gentleman, they've no idea how to treat a gentleman. Look at that provender," pointing to his uneaten prison ration. "They tell me I am detained as a witness, and I passed the night among a lot of cut-throats and dirty rascals—a pretty witness I'd be in a month spent in such company."

"But what under heavens," asked Philip, "induced you to come to New York with Laura! What was it for?"

"What for? Why, she wanted me to come. I didn't know anything about that cursed Selby. She said it was lobby business for the University. I'd no idea what she was dragging me into that confounded hotel for. I suppose she knew that the Southerners all go there, and thought she'd find her man. Oh! Lord, I wish I'd taken your advice. You might as well murder somebody and have the credit of it, as get into the newspapers the way I have. She's pure devil, that girl. You ought to have seen how sweet she was on me; what an ass I am."

"Well, I'm not going to dispute a poor, prisoner. But the first thing is to get you out of this. I've brought the note Laura wrote you, for one thing, and I've seen your uncle, and explained the truth of the case to him. He will be here soon."

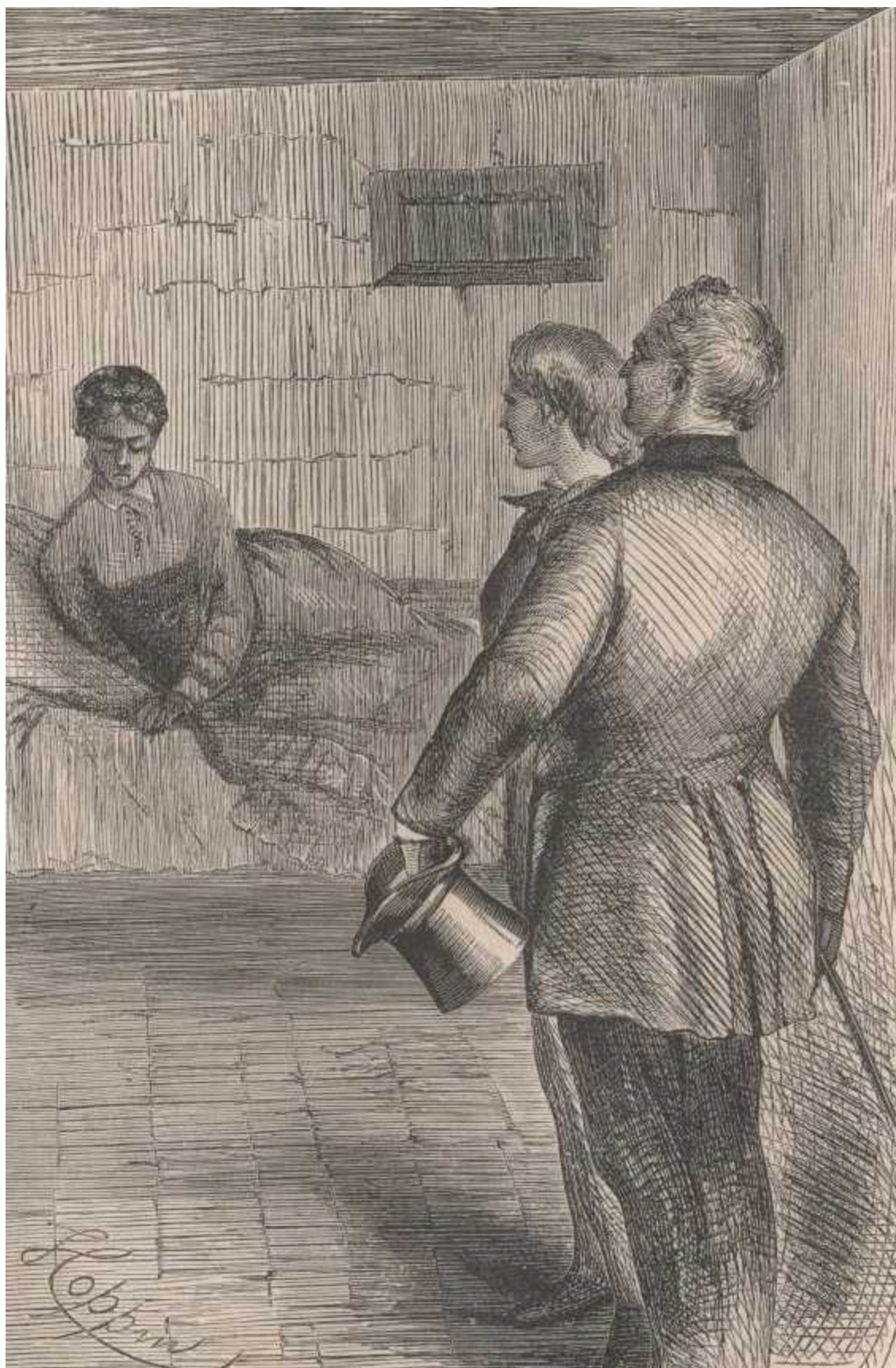
Harry's uncle came, with; other friends, and in the course of the day made such a showing to the authorities that Harry was released, on giving bonds to appear as a witness when wanted. His spirits rose with their usual elasticity as soon as he was out of Centre Street, and he insisted on giving Philip and his friends a royal supper at Delmonico's, an excess which was

perhaps excusable in the rebound of his feelings, and which was committed with his usual reckless generosity. Harry ordered, the supper, and it is perhaps needless to say, that Philip paid the bill.

Neither of the young men felt like attempting to see Laura that day, and she saw no company except the newspaper reporters, until the arrival of Col. Sellers and Washington Hawkins, who had hastened to New York with all speed.

They found Laura in a cell in the upper tier of the women's department. The cell was somewhat larger than those in the men's department, and might be eight feet by ten square, perhaps a little longer. It was of stone, floor and all, and tile roof was oven shaped. A narrow slit in the roof admitted sufficient light, and was the only means of ventilation; when the window was opened there was nothing to prevent the rain coming in. The only means of heating being from the corridor, when the door was ajar, the cell was chilly and at this time damp. It was whitewashed and clean, but it had a slight jail odor; its only furniture was a narrow iron bedstead, with a tick of straw and some blankets, not too clean.

When Col. Sellers was conducted to this cell by the matron and looked in, his emotions quite overcame him, the tears rolled down his cheeks and his voice trembled so that he could hardly speak. Washington was unable to say anything; he looked from Laura to the miserable creatures who were walking in the corridor with unutterable disgust. Laura was alone calm and self-contained, though she was not unmoved by the sight of the grief of her friends.



"Are you comfortable, Laura?" was the first word the Colonel could get out.

"You see," she replied. "I can't say it's exactly comfortable."

"Are you cold?"

"It is pretty chilly. The stone floor is like ice. It chills me through to step on it. I have to sit on the bed."

"Poor thing, poor thing. And can you eat any thing?"

"No, I am not hungry. I don't know that I could eat any thing, I can't eat that."

"Oh dear," continued the Colonel, "it's dreadful. But cheer up, dear, cheer up;" and the Colonel broke down entirely.

"But," he went on, "we'll stand by you. We'll do everything for you. I know you couldn't have meant to do it, it must have been insanity, you know, or something of that sort. You never did anything of the sort before."

Laura smiled very faintly and said,

"Yes, it was something of that sort. It's all a whirl. He was a villain; you don't know."

"I'd rather have killed him myself, in a duel you know, all fair. I wish I had. But don't you be down. We'll get you the best counsel, the lawyers in New York can do anything; I've read of cases. But you must be comfortable now. We've brought some of your clothes, at the hotel. What else, can we get for you?"

Laura suggested that she would like some sheets for her bed, a piece of carpet to step on, and her meals sent in; and some books and writing materials if it was allowed. The Colonel and Washington promised to

procure all these things, and then took their sorrowful leave, a great deal more affected than the criminal was, apparently, by her situation.

The colonel told the matron as he went away that if she would look to Laura's comfort a little it shouldn't be the worse for her; and to the turnkey who let them out he patronizingly said,

"You've got a big establishment here, a credit to the city. I've got a friend in there—I shall see you again, sir."



By the next day something more of Laura's own story began to appear in the newspapers, colored and heightened by reporters' rhetoric. Some of them cast a lurid light upon the Colonel's career, and represented his victim as a beautiful avenger of her murdered innocence; and others pictured her as his willing paramour and pitiless slayer. Her communications to the reporters were stopped by her lawyers as soon as they were retained and visited her, but this fact did not prevent—it may have facilitated—the appearance of casual paragraphs here and there which were likely to beget popular sympathy for the poor girl.

The occasion did not pass without "improvement" by the leading journals; and Philip preserved the editorial comments of three or four of them which pleased him most. These he used to read aloud to his friends afterwards and ask them to guess from which journal each of them had been cut. One began in this simple manner:—

History never repeats itself, but the Kaleidoscopic combinations of the pictured present often seem to be constructed out of the broken fragments of antique legends. Washington is not Corinth, and Lais, the beautiful daughter of Timandra, might not have been the prototype of the ravishing Laura, daughter of the plebeian house of Hawkins; but the orators add statesmen who were the purchasers of the favors of the one, may have been as incorruptible as the Republican statesmen who learned how to love and how to vote from the sweet lips of the Washington lobbyist; and perhaps the modern Lais would never have departed from the national Capital if there had been there even one republican Xenocrates who resisted her blandishments. But here the parallel fails. Lais, wandering away with the youth Rippostratus, is slain by the women who are jealous of her charms. Laura, straying into her Thessaly with the youth Brierly, slays her other lover and becomes the champion of the wrongs of her sex.

Another journal began its editorial with less lyrical beauty, but with equal force. It closed as follows:—

With Laura Hawkins, fair, fascinating and fatal, and with the dissolute Colonel of a lost cause, who has reaped the harvest he sowed, we have nothing to do. But as the curtain rises on this awful tragedy, we catch a glimpse of the society at the capital under this Administration, which we cannot contemplate without alarm for the fate of the Republic.

A third newspaper took up the subject in a different tone. It said:—

Our repeated predictions are verified. The pernicious doctrines which we have announced as prevailing in American society have been again illustrated. The

name of the city is becoming a reproach. We may have done something in averting its ruin in our resolute exposure of the Great Frauds; we shall not be deterred from insisting that the outraged laws for the protection of human life shall be vindicated now, so that a person can walk the streets or enter the public houses, at least in the day-time, without the risk of a bullet through his brain.

A fourth journal began its remarks as follows:—

The fullness with which we present our readers this morning the details of the Selby-Hawkins homicide is a miracle of modern journalism. Subsequent investigation can do little to fill out the picture. It is the old story. A beautiful woman shoots her absconding lover in cold-blood; and we shall doubtless learn in due time that if she was not as mad as a hare in this month of March, she was at least laboring under what is termed "momentary insanity."

It would not be too much to say that upon the first publication of the facts of the tragedy, there was an almost universal feeling of rage against the murderess in the Tombs, and that reports of her beauty only heightened the indignation. It was as if she presumed upon that and upon her sex, to defy the law; and there was a fervent hope that the law would take its plain course.

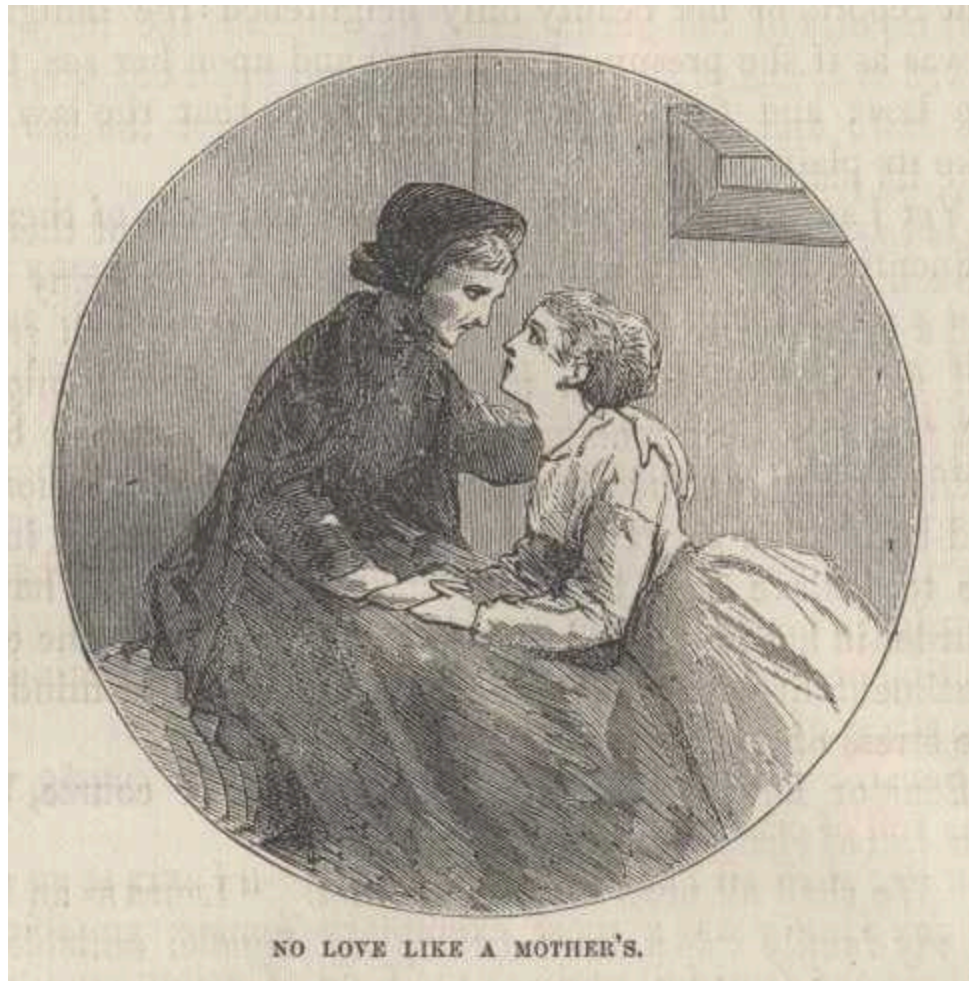
Yet Laura was not without friends, and some of them very influential too. She had in keeping a great many secrets and a great many reputations, perhaps. Who shall set himself up to judge human motives. Why, indeed, might we not feel pity for a woman whose brilliant career had been so suddenly extinguished in misfortune and crime? Those who had known her so well in Washington might find it impossible to believe that the fascinating woman could have had murder in her heart, and would readily give ear to the current sentimentality about the temporary aberration of mind under the stress of personal calamity.

Senator Dilworthy, was greatly shocked, of course, but he was full of charity for the erring.

"We shall all need mercy," he said. "Laura as an inmate of my family was a most exemplary female, amiable, affectionate and truthful, perhaps too fond of gaiety, and neglectful of the externals of religion, but a woman of principle. She may have had experiences of which I am ignorant, but she could not have gone to this extremity if she had been in her own right mind."

To the Senator's credit be it said, he was willing to help Laura and her family in this dreadful trial. She, herself, was not without money, for the Washington lobbyist is not seldom more fortunate than the Washington claimant, and she was able to procure a good many luxuries to mitigate the severity of her prison life. It enabled her also to have her own family near her, and to see some of them daily. The tender solicitude of her mother, her childlike grief, and her firm belief in the real guiltlessness of her daughter, touched even the custodians of the Tombs who are enured to scenes of pathos.

Mrs. Hawkins had hastened to her daughter as soon as she received money for the journey. She had no reproaches, she had only tenderness and pity. She could not shut out the dreadful facts of the case, but it had been enough for her that Laura had said, in their first interview, "mother, I did not know what I was doing." She obtained lodgings near, the prison and devoted her life to her daughter, as if she had been really her own child. She would have remained in the prison day and night if it had been permitted. She was aged and feeble, but this great necessity seemed to give her new life.



The pathetic story of the old lady's ministrations, and her simplicity and faith, also got into the newspapers in time, and probably added to the pathos of this wrecked woman's fate, which was beginning to be felt by the public. It was certain that she had champions who thought that her wrongs ought to be placed against her crime, and expressions of this feeling came to her in various ways. Visitors came to see her, and gifts of fruit and flowers were sent, which brought some cheer into her hard and gloomy cell.

Laura had declined to see either Philip or Harry, somewhat to the former's relief, who had a notion that she would necessarily feel humiliated by seeing him after breaking faith with him, but to the discomfiture of

Harry, who still felt her fascination, and thought her refusal heartless. He told Philip that of course he had got through with such a woman, but he wanted to see her.

Philip, to keep him from some new foolishness, persuaded him to go with him to Philadelphia; and, give his valuable services in the mining operations at Ilium.

The law took its course with Laura. She was indicted for murder in the first degree and held for trial at the summer term. The two most distinguished criminal lawyers in the city had been retained for her defence, and to that the resolute woman devoted her days with a courage that rose as she consulted with her counsel and understood the methods of criminal procedure in New York.

She was greatly depressed, however, by the news from Washington. Congress adjourned and her bill had failed to pass the Senate. It must wait for the next session.

CHAPTER XLVIII.

It had been a bad winter, somehow, for the firm of Pennybacker, Bigler and Small. These celebrated contractors usually made more money during the session of the legislature at Harrisburg than upon all their summer work, and this winter had been unfruitful. It was unaccountable to Bigler.

"You see, Mr. Bolton," he said, and Philip was present at the conversation, "it puts us all out. It looks as if politics was played out. We'd counted on the year of Simon's re-election. And, now, he's reelected, and I've yet to see the first man who's the better for it."

"You don't mean to say," asked Philip, "that he went in without paying anything?"

"Not a cent, not a dash cent, as I can hear," repeated Mr. Bigler, indignantly. "I call it a swindle on the state. How it was done gets me. I never saw such a tight time for money in Harrisburg."

"Were there no combinations, no railroad jobs, no mining schemes put through in connection with the election?"

"Not that I knew," said Bigler, shaking his head in disgust. "In fact it was openly said, that there was no money in the election. It's perfectly unheard of."

"Perhaps," suggested Philip, "it was effected on what the insurance companies call the 'endowment,' or the 'paid up' plan, by which a policy is secured after a certain time without further payment."

"You think then," said Mr. Bolton smiling, "that a liberal and sagacious politician might own a legislature after a time, and not be bothered with keeping up his payments?"

"Whatever it is," interrupted Mr. Bigler, "it's devilish ingenious and goes ahead of my calculations; it's cleaned me out, when I thought we had a dead

sure thing. I tell you what it is, gentlemen, I shall go in for reform. Things have got pretty mixed when a legislature will give away a United States senatorship."



It was melancholy, but Mr. Bigler was not a man to be crushed by one misfortune, or to lose his confidence in human nature, on one exhibition of apparent honesty. He was already on his feet again, or would be if Mr. Bolton could tide him over shoal water for ninety days.

"We've got something with money in it," he explained to Mr. Bolton, "got hold of it by good luck. We've got the entire contract for Dobson's Patent Pavement for the city of Mobile. See here."

Mr. Bigler made some figures; contract so; much, cost of work and materials so much, profits so much. At the end of three months the city would owe the company three hundred and seventy-five thousand dollars-

two hundred thousand of that would be profits. The whole job was worth at least a million to the company—it might be more. There could be no mistake in these figures; here was the contract, Mr. Bolton knew what materials were worth and what the labor would cost.

Mr. Bolton knew perfectly well from sore experience that there was always a mistake in figures when Bigler or Small made them, and he knew that he ought to send the fellow about his business. Instead of that, he let him talk.

They only wanted to raise fifty thousand dollars to carry on the contract—that expended they would have city bonds. Mr. Bolton said he hadn't the money. But Bigler could raise it on his name. Mr. Bolton said he had no right to put his family to that risk. But the entire contract could be assigned to him—the security was ample—it was a fortune to him if it was forfeited. Besides Mr. Bigler had been unfortunate, he didn't know where to look for the necessities of life for his family. If he could only have one more chance, he was sure he could right himself. He begged for it.

And Mr. Bolton yielded. He could never refuse such appeals. If he had befriended a man once and been cheated by him, that man appeared to have a claim upon him forever. He shrank, however, from telling his wife what he had done on this occasion, for he knew that if any person was more odious than Small to his family it was Bigler.

"Philip tells me," Mrs. Bolton said that evening, "that the man Bigler has been with thee again to-day. I hope thee will have nothing more to do with him."

"He has been very unfortunate," replied Mr. Bolton, uneasily.

"He is always unfortunate, and he is always getting thee into trouble. But thee didn't listen to him again?"

"Well, mother, his family is in want, and I lent him my name—but I took ample security. The worst that can happen will be a little inconvenience."

Mrs. Bolton looked grave and anxious, but she did not complain or remonstrate; she knew what a "little inconvenience" meant, but she knew there was no help for it. If Mr. Bolton had been on his way to market to buy

a dinner for his family with the only dollar he had in the world in his pocket, he would have given it to a chance beggar who asked him for it. Mrs. Bolton only asked (and the question showed that she was no mere provident than her husband where her heart was interested),

"But has thee provided money for Philip to use in opening the coal mine?"

"Yes, I have set apart as much as it ought to cost to open the mine, as much as we can afford to lose if no coal is found. Philip has the control of it, as equal partner in the venture, deducting the capital invested. He has great confidence in his success, and I hope for his sake he won't be disappointed."

Philip could not but feel that he was treated very much like one of the Bolton-family—by all except Ruth. His mother, when he went home after his recovery from his accident, had affected to be very jealous of Mrs. Bolton, about whom and Ruth she asked a thousand questions—an affectation of jealousy which no doubt concealed a real heartache, which comes to every mother when her son goes out into the world and forms new ties. And to Mrs. Sterling; a widow, living on a small income in a remote Massachusetts village, Philadelphia was a city of many splendors. All its inhabitants seemed highly favored, dwelling in ease and surrounded by superior advantages. Some of her neighbors had relations living in Philadelphia, and it seemed to them somehow a guarantee of respectability to have relations in Philadelphia. Mrs. Sterling was not sorry to have Philip make his way among such well-to-do people, and she was sure that no good fortune could be too good for his deserts.

"So, sir," said Ruth, when Philip came from New York, "you have been assisting in a pretty tragedy. I saw your name in the papers. Is this woman a specimen of your western friends?"

"My only assistance," replied Philip, a little annoyed, was in trying to keep Harry out of a bad scrape, and I failed after all. He walked into her trap, and he has been punished for it. I'm going to take him up to Ilium to see if he won't work steadily at one thing, and quit his nonsense."

"Is she as beautiful as the newspapers say she is?"

"I don't know, she has a kind of beauty—she is not like—"

"Not like Alice?"

"Well, she is brilliant; she was called the handsomest woman in Washington—dashing, you know, and sarcastic and witty. Ruth, do you believe a woman ever becomes a devil?"

"Men do, and I don't know why women shouldn't. But I never saw one."

"Well, Laura Hawkins comes very near it. But it is dreadful to think of her fate."

"Why, do you suppose they will hang a woman? Do you suppose they will be so barbarous as that?"

"I wasn't thinking of that—it's doubtful if a New York jury would find a woman guilty of any such crime. But to think of her life if she is acquitted."

"It is dreadful," said Ruth, thoughtfully, "but the worst of it is that you men do not want women educated to do anything, to be able to earn an honest living by their own exertions. They are educated as if they were always to be petted and supported, and there was never to be any such thing as misfortune. I suppose, now, that you would all choose to have me stay idly at home, and give up my profession."

"Oh, no," said Philip, earnestly, "I respect your resolution. But, Ruth, do you think you would be happier or do more good in following your profession than in having a home of your own?"

"What is to hinder having a home of my, own?"

"Nothing, perhaps, only you never would be in it—you would be away day and night, if you had any practice; and what sort of a home would that make for your husband?"

"What sort of a home is it for the wife whose husband is always away riding about in his doctor's gig?"

"Ah, you know that is not fair. The woman makes the home."

Philip and Ruth often had this sort of discussion, to which Philip was always trying to give a personal turn. He was now about to go to Ilium for the season, and he did not like to go without some assurance from Ruth that she might perhaps love him some day; when he was worthy of it, and when he could offer her something better than a partnership in his poverty.

"I should work with a great deal better heart, Ruth," he said the morning he was taking leave, "if I knew you cared for me a little."

Ruth was looking down; the color came faintly to her cheeks, and she hesitated. She needn't be looking down, he thought, for she was ever so much shorter than tall Philip.

"It's not much of a place, Ilium," Philip went on, as if a little geographical remark would fit in here as well as anything else, "and I shall have plenty of time to think over the responsibility I have taken, and—" his observation did not seem to be coming out any where.

But Ruth looked up, and there was a light in her eyes that quickened Phil's pulse. She took his hand, and said with serious sweetness:

"Thee mustn't lose heart, Philip." And then she added, in another mood, "Thee knows I graduate in the summer and shall have my diploma. And if any thing happens—mines explode sometimes—thee can send for me. Farewell."

The opening of the Ilium coal mine was begun with energy, but without many omens of success. Philip was running a tunnel into the breast of the mountain, in faith that the coal stratum ran there as it ought to. How far he must go in he believed he knew, but no one could tell exactly. Some of the miners said that they should probably go through the mountain, and that the hole could be used for a railway tunnel. The mining camp was a busy place at any rate. Quite a settlement of board and log shanties had gone up, with a blacksmith shop, a small machine shop, and a temporary store for supplying the wants of the workmen. Philip and Harry pitched a commodious tent, and lived in the full enjoyment of the free life.

There is no difficulty in digging a bole in the ground, if you have money enough to pay for the digging, but those who try this sort of work are always surprised at the large amount of money necessary to make a small

hole. The earth is never willing to yield one product, hidden in her bosom, without an equivalent for it. And when a person asks of her coal, she is quite apt to require gold in exchange.

It was exciting work for all concerned in it. As the tunnel advanced into the rock every day promised to be the golden day. This very blast might disclose the treasure.

The work went on week after week, and at length during the night as well as the daytime. Gangs relieved each other, and the tunnel was every hour, inch by inch and foot by foot, crawling into the mountain. Philip was on the stretch of hope and excitement. Every pay day he saw his funds melting away, and still there was only the faintest show of what the miners call "signs."

The life suited Harry, whose buoyant hopefulness was never disturbed. He made endless calculations, which nobody could understand, of the probable position of the vein. He stood about among the workmen with the busiest air. When he was down at Ilium he called himself the engineer of the works, and he used to spend hours smoking his pipe with the Dutch landlord on the hotel porch, and astonishing the idlers there with the stories of his railroad operations in Missouri. He talked with the landlord, too, about enlarging his hotel, and about buying some village lots, in the prospect of a rise, when the mine was opened. He taught the Dutchman how to mix a great many cooling drinks for the summer time, and had a bill at the hotel, the growing length of which Mr. Dusenheimer contemplated with pleasant anticipations. Mr. Brierly was a very useful and cheering person wherever he went.



Midsummer arrived: Philip could report to Mr. Bolton only progress, and this was not a cheerful message for him to send to Philadelphia in reply to inquiries that he thought became more and more anxious. Philip himself was a prey to the constant fear that the money would give out before the coal was struck.

At this time Harry was summoned to New York, to attend the trial of Laura Hawkins. It was possible that Philip would have to go also, her lawyer wrote, but they hoped for a postponement. There was important evidence that they could not yet obtain, and he hoped the judge would not force them to a trial unprepared. There were many reasons for a delay, reasons which of course are never mentioned, but which it would seem that

a New York judge sometimes must understand, when he grants a postponement upon a motion that seems to the public altogether inadequate.

Harry went, but he soon came back. The trial was put off. Every week we can gain, said the learned counsel, Braham, improves our chances. The popular rage never lasts long.



CHAPTER XLIX.

"We've struck it!"

This was the announcement at the tent door that woke Philip out of a sound sleep at dead of night, and shook all the sleepiness out of him in a trice.



"What! Where is it? When? Coal? Let me see it. What quality is it?" were some of the rapid questions that Philip poured out as he hurriedly dressed. "Harry, wake up, my boy, the coal train is coming. Struck it, eh? Let's see?"

The foreman put down his lantern, and handed Philip a black lump. There was no mistake about it, it was the hard, shining anthracite, and its freshly fractured surface, glistened in the light like polished steel. Diamond never shone with such lustre in the eyes of Philip.

Harry was exuberant, but Philip's natural caution found expression in his next remark.

"Now, Roberts, you are sure about this?"

"What—sure that it's coal?"

"O, no, sure that it's the main vein."

"Well, yes. We took it to be that"

"Did you from the first?"

"I can't say we did at first. No, we didn't. Most of the indications were there, but not all of them, not all of them. So we thought we'd prospect a bit."

"Well?"

"It was tolerable thick, and looked as if it might be the vein—looked as if it ought to be the vein. Then we went down on it a little. Looked better all the time."

"When did you strike it?"

"About ten o'clock."

"Then you've been prospecting about four hours."

"Yes, been sinking on it something over four hours."

"I'm afraid you couldn't go down very far in four hours—could you?"

"O yes—it's a good deal broke up, nothing but picking and gadding stuff."

"Well, it does look encouraging, sure enough—but then the lacking indications—"

"I'd rather we had them, Mr. Sterling, but I've seen more than one good permanent mine struck without 'em in my time."

"Well, that is encouraging too."

"Yes, there was the Union, the Alabama and the Black Mohawk—all good, sound mines, you know—all just exactly like this one when we first struck them."

"Well, I begin to feel a good deal more easy. I guess we've really got it. I remember hearing them tell about the Black Mohawk."

"I'm free to say that I believe it, and the men all think so too. They are all old hands at this business."

"Come Harry, let's go up and look at it, just for the comfort of it," said Philip. They came back in the course of an hour, satisfied and happy.

There was no more sleep for them that night. They lit their pipes, put a specimen of the coal on the table, and made it a kind of loadstone of thought and conversation.

"Of course," said Harry, "there will have to be a branch track built, and a 'switch-back' up the hill."

"Yes, there will be no trouble about getting the money for that now. We could sell-out tomorrow for a handsome sum. That sort of coal doesn't go begging within a mile of a rail-road. I wonder if Mr. Bolton' would rather sell out or work it?"

"Oh, work it," says Harry, "probably the whole mountain is coal now you've got to it."

"Possibly it might not be much of a vein after all," suggested Philip.

"Possibly it is; I'll bet it's forty feet thick. I told you. I knew the sort of thing as soon as I put my eyes on it."

Philip's next thought was to write to his friends and announce their good fortune. To Mr. Bolton he wrote a short, business letter, as calm as he could make it. They had found coal of excellent quality, but they could not yet tell with absolute certainty what the vein was. The prospecting was still going on. Philip also wrote to Ruth; but though this letter may have glowed, it was not with the heat of burning anthracite. He needed no artificial heat to warm his pen and kindle his ardor when he sat down to write to Ruth. But it must be confessed that the words never flowed so easily before, and he ran on for an hour disporting in all the extravagance of his imagination. When Ruth read it, she doubted if the fellow had not gone out of his senses. And it was not until she reached the postscript that she discovered the cause of the exhilaration. "P. S.—We have found coal."

The news couldn't have come to Mr. Bolton in better time. He had never been so sorely pressed. A dozen schemes which he had in hand, any one of which might turn up a fortune, all languished, and each needed just a little more, money to save that which had been invested. He hadn't a piece of real estate that was not covered with mortgages, even to the wild tract which Philip was experimenting on, and which had, no marketable value above the incumbrance on it.

He had come home that day early, unusually dejected.

"I am afraid," he said to his wife, "that we shall have to give up our house. I don't care for myself, but for thee and the children."

"That will be the least of misfortunes," said Mrs. Bolton, cheerfully, "if thee can clear thyself from debt and anxiety, which is wearing thee out, we can live any where. Thee knows we were never happier than when we were in a much humbler home."

"The truth is, Margaret, that affair of Bigler and Small's has come on me just when I couldn't stand another ounce. They have made another failure of it. I might have known they would; and the sharpers, or fools, I don't know which, have contrived to involve me for three times as much as the first

obligation. The security is in my hands, but it is good for nothing to me. I have not the money to do anything with the contract."

Ruth heard this dismal news without great surprise. She had long felt that they were living on a volcano, that might go in to active operation at any hour. Inheriting from her father an active brain and the courage to undertake new things, she had little of his sanguine temperament which blinds one to difficulties and possible failures. She had little confidence in the many schemes which had been about to lift her father out of all his embarrassments and into great wealth, ever since she was a child; as she grew older, she rather wondered that they were as prosperous as they seemed to be, and that they did not all go to smash amid so many brilliant projects. She was nothing but a woman, and did not know how much of the business prosperity of the world is only a bubble of credit and speculation, one scheme helping to float another which is no better than it, and the whole liable to come to naught and confusion as soon as the busy brain that conceived them ceases its power to devise, or when some accident produces a sudden panic.

"Perhaps, I shall be the stay of the family, yet," said Ruth, with an approach to gaiety; "When we move into a little house in town, will thee let me put a little sign on the door: DR. RUTH BOLTON? Mrs. Dr. Longstreet, thee knows, has a great income."

"Who will pay for the sign, Ruth?" asked Mr. Bolton.

A servant entered with the afternoon mail from the office. Mr. Bolton took his letters listlessly, dreading to open them. He knew well what they contained, new difficulties, more urgent demands for money.

"Oh, here is one from Philip. Poor fellow. I shall feel his disappointment as much as my own bad luck. It is hard to bear when one is young."

He opened the letter and read. As he read his face lightened, and he fetched such a sigh of relief, that Mrs. Bolton and Ruth both exclaimed.

"Read that," he cried, "Philip has found coal!"

The world was changed in a moment. One little sentence had done it. There was no more trouble. Philip had found coal. That meant relief. That

meant fortune. A great weight was taken off, and the spirits of the whole household rose magically. Good Money! beautiful demon of Money, what an enchanter thou art! Ruth felt that she was of less consequence in the household, now that Philip had found Coal, and perhaps she was not sorry to feel so.

Mr. Bolton was ten years younger the next morning. He went into the city, and showed his letter on change. It was the sort of news his friends were quite willing to listen to. They took a new interest in him. If it was confirmed, Bolton would come right up again. There would be no difficulty about his getting all the money he wanted. The money market did not seem to be half so tight as it was the day before. Mr. Bolton spent a very pleasant day in his office, and went home revolving some new plans, and the execution of some projects he had long been prevented from entering upon by the lack of money.

The day had been spent by Philip in no less excitement. By daylight, with Philip's letters to the mail, word had gone down to Ilium that coal had been found, and very early a crowd of eager spectators had come up to see for themselves.



THE MINE AT ILIUM.

The "prospecting" continued day and night for upwards of a week, and during the first four or five days the indications grew more and more promising, and the telegrams and letters kept Mr. Bolton duly posted. But at last a change came, and the promises began to fail with alarming rapidity. In the end it was demonstrated without the possibility of a doubt that the great "find" was nothing but a worthless seam.

Philip was cast down, all the more so because he had been so foolish as to send the news to Philadelphia before he knew what he was writing about. And now he must contradict it. "It turns out to be only a mere seam," he wrote, "but we look upon it as an indication of better further in."

Alas! Mr. Bolton's affairs could not wait for "indications." The future might have a great deal in store, but the present was black and hopeless. It was doubtful if any sacrifice could save him from ruin. Yet sacrifice he must make, and that instantly, in the hope of saving something from the wreck of his fortune.

His lovely country home must go. That would bring the most ready money. The house that he had built with loving thought for each one of his family, as he planned its luxurious apartments and adorned it; the grounds that he had laid out, with so much delight in following the tastes of his wife, with whom the country, the cultivation of rare trees and flowers, the care of garden and lawn and conservatories were a passion almost; this home, which he had hoped his children would enjoy long after he had done with it, must go.

The family bore the sacrifice better than he did. They declared in fact—women are such hypocrites—that they quite enjoyed the city (it was in August) after living so long in the country, that it was a thousand times more convenient in every respect; Mrs. Bolton said it was a relief from the worry of a large establishment, and Ruth reminded her father that she should have had to come to town anyway before long.

Mr. Bolton was relieved, exactly as a water-logged ship is lightened by throwing overboard the most valuable portion of the cargo—but the leak was not stopped. Indeed his credit was injured instead of helped by the prudent step he had taken. It was regarded as a sure evidence of his embarrassment, and it was much more difficult for him to obtain help than if he had, instead of retrenching, launched into some new speculation.

Philip was greatly troubled, and exaggerated his own share in the bringing about of the calamity.

"You must not look at it so!" Mr. Bolton wrote him. "You have neither helped nor hindered—but you know you may help by and by. It would have all happened just so, if we had never begun to dig that hole. That is only a drop. Work away. I still have hope that something will occur to relieve me. At any rate we must not give up the mine, so long as we have any show."

Alas! the relief did not come. New misfortunes came instead. When the extent of the Bigler swindle was disclosed there was no more hope that Mr. Bolton could extricate himself, and he had, as an honest man, no resource except to surrender all his property for the benefit of his creditors.

The Autumn came and found Philip working with diminished force but still with hope. He had again and again been encouraged by good "indications," but he had again and again been disappointed. He could not go on much longer, and almost everybody except himself had thought it was useless to go on as long as he had been doing.

When the news came of Mr. Bolton's failure, of course the work stopped. The men were discharged, the tools were housed, the hopeful noise of pickman and driver ceased, and the mining camp had that desolate and mournful aspect which always hovers over a frustrated enterprise.

Philip sat down amid the ruins, and almost wished he were buried in them. How distant Ruth was now from him, now, when she might need him most. How changed was all the Philadelphia world, which had hitherto stood for the exemplification of happiness and prosperity.

He still had faith that there was coal in that mountain. He made a picture of himself living there a hermit in a shanty by the tunnel, digging away with solitary pick and wheelbarrow, day after day and year after year, until he grew gray and aged, and was known in all that region as the old man of the mountain. Perhaps some day—he felt it must be so some day—he should strike coal. But what if he did? Who would be alive to care for it then? What would he care for it then? No, a man wants riches in his youth, when the world is fresh to him. He wondered why Providence could not have reversed the usual process, and let the majority of men begin with wealth and gradually spend it, and die poor when they no longer needed it.



Harry went back to the city. It was evident that his services were no longer needed. Indeed, he had letters from his uncle, which he did not read to Philip, desiring him to go to San Francisco to look after some government contracts in the harbor there.

Philip had to look about him for something to do; he was like Adam; the world was all before him whereto choose. He made, before he went elsewhere, a somewhat painful visit to Philadelphia, painful but yet not without its sweetnesses. The family had never shown him so much affection before; they all seemed to think his disappointment of more importance than their own misfortune. And there was that in Ruth's manner—in what she gave him and what she withheld—that would have made a hero of a very much less promising character than Philip Sterling.

Among the assets of the Bolton property, the Ilium tract was sold, and Philip bought it in at the vendue, for a song, for no one cared to even undertake the mortgage on it except himself. He went away the owner of it,

and had ample time before he reached home in November, to calculate how much poorer he was by possessing it.



CHAPTER L.

It is impossible for the historian, with even the best intentions, to control events or compel the persons of his narrative to act wisely or to be successful. It is easy to see how things might have been better managed; a very little change here and there would have made a very, different history of this one now in hand.

If Philip had adopted some regular profession, even some trade, he might now be a prosperous editor or a conscientious plumber, or an honest lawyer, and have borrowed money at the saving's bank and built a cottage, and be now furnishing it for the occupancy of Ruth and himself. Instead of this, with only a smattering of civil engineering, he is at his mother's house, fretting and fuming over his ill-luck, and the hardness and, dishonesty of men, and thinking of nothing but how to get the coal out of the Ilium hills.

If Senator Dilworthy had not made that visit to Hawkeye, the Hawkins family and Col. Sellers would not now be dancing attendance upon Congress, and endeavoring to tempt that immaculate body into one of those appropriations, for the benefit of its members, which the members find it so difficult to explain to their constituents; and Laura would not be lying in the Tombs, awaiting her trial for murder, and doing her best, by the help of able counsel, to corrupt the pure fountain of criminal procedure in New York.

If Henry Brierly had been blown up on the first Mississippi steamboat he set foot on, as the chances were that he would be, he and Col. Sellers never would have gone into the Columbus Navigation scheme, and probably never into the East Tennessee Land scheme, and he would not now be detained in New York from very important business operations on the Pacific coast, for the sole purpose of giving evidence to convict of murder the only woman he ever loved half as much as he loves himself. If Mr. Bolton had said the little word "no" to Mr. Bigler, Alice Montague might now be spending the winter in Philadelphia, and Philip also (waiting to resume his mining operations in the spring); and Ruth would not be an assistant in a Philadelphia hospital, taxing her strength with arduous routine

duties, day by day, in order to lighten a little the burdens that weigh upon her unfortunate family.

It is altogether a bad business. An honest historian, who had progressed thus far, and traced everything to such a condition of disaster and suspension, might well be justified in ending his narrative and writing—"after this the deluge." His only consolation would be in the reflection that he was not responsible for either characters or events.

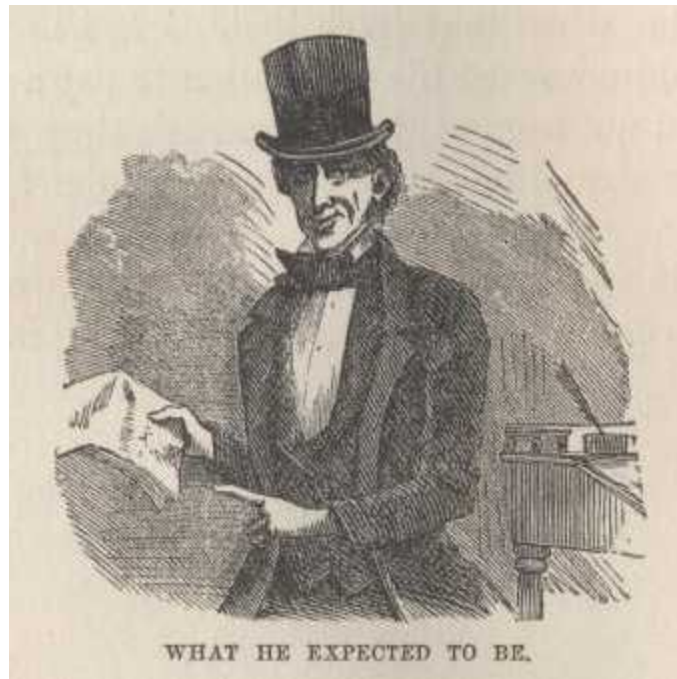
And the most annoying thought is that a little money, judiciously applied, would relieve the burdens and anxieties of most of these people; but affairs seem to be so arranged that money is most difficult to get when people need it most.

A little of what Mr. Bolton has weakly given to unworthy people would now establish his family in a sort of comfort, and relieve Ruth of the excessive toil for which she inherited no adequate physical vigor. A little money would make a prince of Col. Sellers; and a little more would calm the anxiety of Washington Hawkins about Laura, for however the trial ended, he could feel sure of extricating her in the end. And if Philip had a little money he could unlock the stone door in the mountain whence would issue a stream of shining riches. It needs a golden wand to strike that rock. If the Knobs University bill could only go through, what a change would be wrought in the condition of most of the persons in this history. Even Philip himself would feel the good effects of it; for Harry would have something and Col. Sellers would have something; and have not both these cautious people expressed a determination to take an interest in the Ilium mine when they catch their larks?

Philip could not resist the inclination to pay a visit to Fallkill. He had not been at the Montague's since the time he saw Ruth there, and he wanted to consult the Squire about an occupation. He was determined now to waste no more time in waiting on Providence, but to go to work at something, if it were nothing better, than teaching in the Fallkill Seminary, or digging clams on Hingham beach. Perhaps he could read law in Squire Montague's office while earning his bread as a teacher in the Seminary.



It was not altogether Philip's fault, let us own, that he was in this position. There are many young men like him in American society, of his age, opportunities, education and abilities, who have really been educated for nothing and have let themselves drift, in the hope that they will find somehow, and by some sudden turn of good luck, the golden road to fortune. He was not idle or lazy, he had energy and a disposition to carve his own way. But he was born into a time when all young men of his age caught the fever of speculation, and expected to get on in the world by the omission of some of the regular processes which have been appointed from of old.



And examples were not wanting to encourage him. He saw people, all around him, poor yesterday, rich to-day, who had come into sudden opulence by some means which they could not have classified among any of the regular occupations of life. A war would give such a fellow a career and very likely fame. He might have been a "railroad man," or a politician, or a land speculator, or one of those mysterious people who travel free on all rail-roads and steamboats, and are continually crossing and recrossing the Atlantic, driven day and night about nobody knows what, and make a great deal of money by so doing. Probably, at last, he sometimes thought with a whimsical smile, he should end by being an insurance agent, and asking people to insure their lives for his benefit.

Possibly Philip did not think how much the attractions of Fallkill were increased by the presence of Alice there. He had known her so long, she had somehow grown into his life by habit, that he would expect the pleasure of her society without thinking much about it. Latterly he never thought of her without thinking of Ruth, and if he gave the subject any attention, it was probably in an undefined consciousness that, he had her sympathy in his

love, and that she was always willing to hear him talk about it. If he ever wondered that Alice herself was not in love and never spoke of the possibility of her own marriage, it was a transient thought for love did not seem necessary, exactly, to one so calm and evenly balanced and with so many resources in her herself.

Whatever her thoughts may have been they were unknown to Philip, as they are to these historians; if she was seeming to be what she was not, and carrying a burden heavier than any one else carried, because she had to bear it alone, she was only doing what thousands of women do, with a self-renunciation and heroism, of which men, impatient and complaining, have no conception. Have not these big babies with beards filled all literature with their outcries, their griefs and their lamentations? It is always the gentle sex which is hard and cruel and fickle and implacable.

"Do you think you would be contented to live in Fallkill, and attend the county Court?" asked Alice, when Philip had opened the budget of his new programme.

"Perhaps not always," said Philip, "I might go and practice in Boston maybe, or go to Chicago."

"Or you might get elected to Congress."

Philip looked at Alice to see if she was in earnest and not chaffing him. Her face was quite sober. Alice was one of those patriotic women in the rural districts, who think men are still selected for Congress on account of qualifications for the office.

"No," said Philip, "the chances are that a man cannot get into congress now without resorting to arts and means that should render him unfit to go there; of course there are exceptions; but do you know that I could not go into politics if I were a lawyer, without losing standing somewhat in my profession, and without raising at least a suspicion of my intentions and unselfishness? Why, it is telegraphed all over the country and commented on as something wonderful if a congressman votes honestly and unselfishly and refuses to take advantage of his position to steal from the government."

"But," insisted Alice, "I should think it a noble ambition to go to congress, if it is so bad, and help reform it. I don't believe it is as corrupt as

the English parliament used to be, if there is any truth in the novels, and I suppose that is reformed."

"I'm sure I don't know where the reform is to begin. I've seen a perfectly capable, honest man, time and again, run against an illiterate trickster, and get beaten. I suppose if the people wanted decent members of congress they would elect them. Perhaps," continued Philip with a smile, "the women will have to vote."

"Well, I should be willing to, if it were a necessity, just as I would go to war and do what I could, if the country couldn't be saved otherwise," said Alice, with a spirit that surprised Philip, well as he thought he knew her. "If I were a young gentleman in these times—"

Philip laughed outright. "It's just what Ruth used to say, 'if she were a man.' I wonder if all the young ladies are contemplating a change of sex."

"No, only a changed sex," retorted Alice; "we contemplate for the most part young men who don't care for anything they ought to care for."

"Well," said Philip, looking humble, "I care for some things, you and Ruth for instance; perhaps I ought not to. Perhaps I ought to care for Congress and that sort of thing."

"Don't be a goose, Philip. I heard from Ruth yesterday."

"Can I see her letter?"

"No, indeed. But I am afraid her hard work is telling on her, together with her anxiety about her father."

"Do you think, Alice," asked Philip with one of those selfish thoughts that are not seldom mixed with real love, "that Ruth prefers her profession to—to marriage?"

"Philip," exclaimed Alice, rising to quit the room, and speaking hurriedly as if the words were forced from her, "you are as blind as a bat; Ruth would cut off her right hand for you this minute."

Philip never noticed that Alice's face was flushed and that her voice was unsteady; he only thought of the delicious words he had heard. And the

poor girl, loyal to Ruth, loyal to Philip, went straight to her room, locked the door, threw herself on the bed and sobbed as if her heart would break. And then she prayed that her Father in Heaven would give her strength. And after a time she was calm again, and went to her bureau drawer and took from a hiding place a little piece of paper, yellow with age. Upon it was pinned a four-leaved clover, dry and yellow also. She looked long at this foolish memento. Under the clover leaf was written in a school-girl's hand—"Philip, June, 186-."



Squire Montague thought very well of Philip's proposal. It would have been better if he had begun the study of the law as soon as he left college, but it was not too late now, and besides he had gathered some knowledge of the world.

"But," asked the Squire, "do you mean to abandon your land in Pennsylvania?" This track of land seemed an immense possible fortune to this New England lawyer-farmer. Hasn't it good timber, and doesn't the railroad almost touch it?"

"I can't do anything with it now. Perhaps I can sometime."

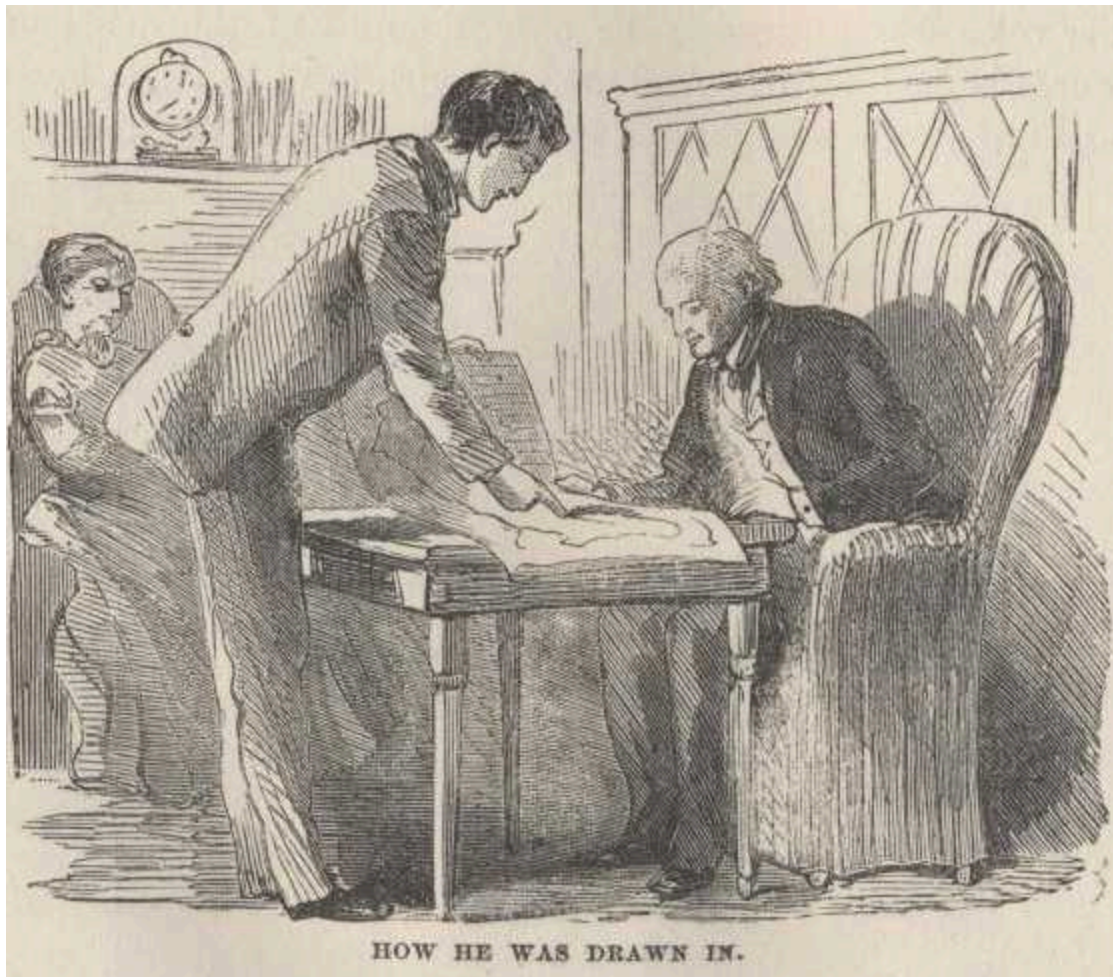
"What is your reason for supposing that there is coal there?"

"The opinion of the best geologist I could consult, my own observation of the country, and the little veins of it we found. I feel certain it is there. I shall find it some day. I know it. If I can only keep the land till I make money enough to try again."

Philip took from his pocket a map of the anthracite coal region, and pointed out the position of the Ilium mountain which he had begun to tunnel.

"Doesn't it look like it?"

"It certainly does," said the Squire, very much interested. It is not unusual for a quiet country gentleman to be more taken with such a venture than a speculator who, has had more experience in its uncertainty. It was astonishing how many New England clergymen, in the time of the petroleum excitement, took chances in oil. The Wall street brokers are said to do a good deal of small business for country clergymen, who are moved no doubt with the laudable desire of purifying the New York stock board.



"I don't see that there is much risk," said the Squire, at length. "The timber is worth more than the mortgage; and if that coal seam does run there, it's a magnificent fortune. Would you like to try it again in the spring, Phil?"

Like to try it! If he could have a little help, he would work himself, with pick and barrow, and live on a crust. Only give him one more chance.

And this is how it came about that the cautious old Squire Montague was drawn into this young fellow's speculation, and began to have his serene old age disturbed by anxieties and by the hope of a great stroke of luck.

"To be sure, I only care about it for the boy," he said. The Squire was like everybody else; sooner or later he must "take a chance."

It is probably on account of the lack of enterprise in women that they are not so fond of stock speculations and mine ventures as men. It is only when woman becomes demoralized that she takes to any sort of gambling. Neither Alice nor Ruth were much elated with the prospect of Philip's renewal of his mining enterprise.

But Philip was exultant. He wrote to Ruth as if his fortune were already made, and as if the clouds that lowered over the house of Bolton were already in the deep bosom of a coal mine buried. Towards spring he went to Philadelphia with his plans all matured for a new campaign. His enthusiasm was irresistible.

"Philip has come, Philip has come," cried the children, as if some great good had again come into the household; and the refrain even sang itself over in Ruth's heart as she went the weary hospital rounds. Mr. Bolton felt more courage than he had had in months, at the sight of his manly face and the sound of his cheery voice.

Ruth's course was vindicated now, and it certainly did not become Philip, who had nothing to offer but a future chance against the visible result of her determination and industry, to open an argument with her. Ruth was never more certain that she was right and that she was sufficient unto herself. She, may be, did not much heed the still small voice that sang in her maiden heart as she went about her work, and which lightened it and made it easy, "Philip has come."

"I am glad for father's sake," she said to Philip, "that thee has come. I can see that he depends greatly upon what thee can do. He thinks women won't hold out long," added Ruth with the smile that Philip never exactly understood.

"And aren't you tired sometimes of the struggle?"

"Tired? Yes, everybody is tired I suppose. But it is a glorious profession. And would you want me to be dependent, Philip?"

"Well, yes, a little," said Philip, feeling his way towards what he wanted to say.

"On what, for instance, just now?" asked Ruth, a little maliciously Philip thought.

"Why, on—" he couldn't quite say it, for it occurred to him that he was a poor stick for any body to lean on in the present state of his fortune, and that the woman before him was at least as independent as he was.

"I don't mean depend," he began again. "But I love you, that's all. Am I nothing—to you?" And Philip looked a little defiant, and as if he had said something that ought to brush away all the sophistries of obligation on either side, between man and woman.

Perhaps Ruth saw this. Perhaps she saw that her own theories of a certain equality of power, which ought to precede a union of two hearts, might be pushed too far. Perhaps she had felt sometimes her own weakness and the need after all of so dear a sympathy and so tender an interest confessed, as that which Philip could give. Whatever moved her—the riddle is as old as creation—she simply looked up to Philip and said in a low voice, "Everything."



And Philip clasping both her hands in his, and looking down into her eyes, which drank in all his tenderness with the thirst of a true woman's nature—

"Oh! Philip, come out here," shouted young Eli, throwing the door wide open.

And Ruth escaped away to her room, her heart singing again, and now as if it would burst for joy, "Philip has come."

That night Philip received a dispatch from Harry—"The trial begins tomorrow."



CHAPTER LI.

December 18—, found Washington Hawkins and Col. Sellers once more at the capitol of the nation, standing guard over the University bill. The former gentleman was despondent, the latter hopeful. Washington's distress of mind was chiefly on Laura's account. The court would soon sit to try her, case, he said, and consequently a great deal of ready money would be needed in the engineering of it. The University bill was sure to pass this, time, and that would make money plenty, but might not the, help come too late? Congress had only just assembled, and delays were to be feared.

"Well," said the Colonel, "I don't know but you are more or less right, there. Now let's figure up a little on, the preliminaries. I think Congress always tries to do as near right as it can, according to its lights. A man can't ask any fairer, than that. The first preliminary it always starts out on, is, to clean itself, so to speak. It will arraign two or three dozen of its members, or maybe four or five dozen, for taking bribes to vote for this and that and the other bill last winter."

"It goes up into the dozens, does it?"

"Well, yes; in a free country likes ours, where any man can run for Congress and anybody can vote for him, you can't expect immortal purity all the time—it ain't in nature. Sixty or eighty or a hundred and fifty people are bound to get in who are not angels in disguise, as young Hicks the correspondent says; but still it is a very good average; very good indeed. As long as it averages as well as that, I think we can feel very well satisfied. Even in these days, when people growl so much and the newspapers are so out of patience, there is still a very respectable minority of honest men in Congress."

"Why a respectable minority of honest men can't do any good, Colonel."

"Oh, yes it can, too"

"Why, how?"

"Oh, in many ways, many ways."

"But what are the ways?"

"Well—I don't know—it is a question that requires time; a body can't answer every question right off-hand. But it does do good. I am satisfied of that."

"All right, then; grant that it does good; go on with the preliminaries."

"That is what I am coming to. First, as I said, they will try a lot of members for taking money for votes. That will take four weeks."

"Yes, that's like last year; and it is a sheer waste of the time for which the nation pays those men to work—that is what that is. And it pinches when a body's got a bill waiting."

"A waste of time, to purify the fountain of public law? Well, I never heard anybody express an idea like that before. But if it were, it would still be the fault of the minority, for the majority don't institute these proceedings. There is where that minority becomes an obstruction—but still one can't say it is on the wrong side.—Well, after they have finished the bribery cases, they will take up cases of members who have bought their seats with money. That will take another four weeks."

"Very good; go on. You have accounted for two-thirds of the session."

"Next they will try each other for various smaller irregularities, like the sale of appointments to West Point cadetships, and that sort of thing—mere trifling pocket-money enterprises that might better, be passed over in silence, perhaps, but then one of our Congresses can never rest easy till it has thoroughly purified itself of all blemishes—and that is a thing to be applauded."

"How long does it take to disinfect itself of these minor impurities?"

"Well, about two weeks, generally."

"So Congress always lies helpless in quarantine ten weeks of a session. That's encouraging. Colonel, poor Laura will never get any benefit from our bill. Her trial will be over before Congress has half purified itself.—And

doesn't it occur to you that by the time it has expelled all its impure members there, may not be enough members left to do business legally?"

"Why I did not say Congress would expel anybody."

"Well won't it expel anybody?"

"Not necessarily. Did it last year? It never does. That would not be regular."

"Then why waste all the session in that tomfoolery of trying members?"

"It is usual; it is customary; the country requires it."

"Then the country is a fool, I think."

"Oh, no. The country thinks somebody is going to be expelled."

"Well, when nobody is expelled, what does the country think then?"

"By that time, the thing has strung out so long that the country is sick and tired of it and glad to have a change on any terms. But all that inquiry is not lost. It has a good moral effect."

"Who does it have a good moral effect on?"

"Well—I don't know. On foreign countries, I think. We have always been under the gaze of foreign countries. There is no country in the world, sir, that pursues corruption as inveterately as we do. There is no country in the world whose representatives try each other as much as ours do, or stick to it as long on a stretch. I think there is something great in being a model for the whole civilized world, Washington"

"You don't mean a model; you mean an example."

"Well, it's all the same; it's just the same thing. It shows that a man can't be corrupt in this country without sweating for it, I can tell you that."

"Hang it, Colonel, you just said we never punish anybody for villainous practices."

"But good God we try them, don't we! Is it nothing to show a disposition to sift things and bring people to a strict account? I tell you it has its effect."

"Oh, bother the effect!—What is it they do do? How do they proceed? You know perfectly well—and it is all bosh, too. Come, now, how do they proceed?"

"Why they proceed right and regular—and it ain't bosh, Washington, it ain't bosh. They appoint a committee to investigate, and that committee hears evidence three weeks, and all the witnesses on one side swear that the accused took money or stock or something for his vote. Then the accused stands up and testifies that he may have done it, but he was receiving and handling a good deal of money at the time and he doesn't remember this particular circumstance—at least with sufficient distinctness to enable him to grasp it tangibly. So of course the thing is not proven—and that is what they say in the verdict. They don't acquit, they don't condemn. They just say, 'Charge not proven.' It leaves the accused in a kind of a shaky condition before the country, it purifies Congress, it satisfies everybody, and it doesn't seriously hurt anybody. It has taken a long time to perfect our system, but it is the most admirable in the world, now."

"So one of those long stupid investigations always turns out in that lame silly way. Yes, you are correct. I thought maybe you viewed the matter differently from other people. Do you think a Congress of ours could convict the devil of anything if he were a member?"

"My dear boy, don't let these damaging delays prejudice you against Congress. Don't use such strong language; you talk like a newspaper. Congress has inflicted frightful punishments on its members—now you know that. When they tried Mr. Fairbanks, and a cloud of witnesses proved him to be—well, you know what they proved him to be—and his own testimony and his own confessions gave him the same character, what did Congress do then?—come!"

"Well, what did Congress do?"

"You know what Congress did, Washington. Congress intimated plainly enough, that they considered him almost a stain upon their body; and without waiting ten days, hardly, to think the thing over, the rose up and

hurled at him a resolution declaring that they disapproved of his conduct! Now you know that, Washington."

"It was a terrific thing—there is no denying that. If he had been proven guilty of theft, arson, licentiousness, infanticide, and defiling graves, I believe they would have suspended him for two days."

"You can depend on it, Washington. Congress is vindictive, Congress is savage, sir, when it gets waked up once. It will go to any length to vindicate its honor at such a time."

"Ah well, we have talked the morning through, just as usual in these tiresome days of waiting, and we have reached the same old result; that is to say, we are no better off than when we began. The land bill is just as far away as ever, and the trial is closer at hand. Let's give up everything and die."

"Die and leave the Duchess to fight it out all alone? Oh, no, that won't do. Come, now, don't talk so. It is all going to come out right. Now you'll see."

"It never will, Colonel, never in the world. Something tells me that. I get more tired and more despondent every day. I don't see any hope; life is only just a trouble. I am so miserable, these days!"

The Colonel made Washington get up and walk the floor with him, arm in arm. The good old speculator wanted to comfort him, but he hardly knew how to go about it. He made many attempts, but they were lame; they lacked spirit; the words were encouraging; but they were only words—he could not get any heart into them. He could not always warm up, now, with the old Hawkeye fervor. By and by his lips trembled and his voice got unsteady. He said:

"Don't give up the ship, my boy—don't do it. The wind's bound to fetch around and set in our favor. I know it."



And the prospect was so cheerful that he wept. Then he blew a trumpet-blast that started the meshes of his handkerchief, and said in almost his breezy old-time way:

"Lord bless us, this is all nonsense! Night doesn't last always; day has got to break some time or other. Every silver lining has a cloud behind it, as the poet says; and that remark has always cheered me; though—I never could see any meaning to it. Everybody uses it, though, and everybody gets comfort out of it. I wish they would start something fresh. Come, now, let's cheer up; there's been as good fish in the sea as there are now. It shall never be said that Beriah Sellers— Come in?"

It was the telegraph boy. The Colonel reached for the message and devoured its contents:

"I said it! Never give up the ship! The trial's, postponed till February, and we'll save the child yet. Bless my life, what lawyers they, have in New-York! Give them money to fight with; and the ghost of an excuse, and they: would manage to postpone anything in this world, unless it might be the millennium or something like that. Now for work again my boy. The trial will last to the middle of March, sure; Congress ends the fourth of March. Within three days of the end of the session they will be done putting through the preliminaries then they will be ready for national business: Our bill will go through in forty-eight hours, then, and we'll telegraph a million dollar's to the jury—to the lawyers, I mean—and the verdict of the jury will be 'Accidental murder resulting from justifiable insanity'—or something to, that effect, something to that effect.—Everything is dead sure, now. Come, what is the matter? What are you wilting down like that, for? You mustn't be a girl, you know."

"Oh, Colonel, I am become so used to troubles, so used to failures, disappointments, hard luck of all kinds, that a little good news breaks me right down. Everything has been so hopeless that now I can't stand good news at all. It is too good to be true, anyway. Don't you see how our bad luck has worked on me? My hair is getting gray, and many nights I don't sleep at all. I wish it was all over and we could rest. I wish we could lie, down and just forget everything, and let it all be just a dream that is done and can't come back to trouble us any more. I am so tired."

"Ah, poor child, don't talk like that—cheer up—there's daylight ahead. Don't give, up. You'll have Laura again, and—Louise, and your mother, and oceans and oceans of money—and then you can go away, ever so far away somewhere, if you want to, and forget all about this infernal place. And by George I'll go with you! I'll go with you—now there's my word on it. Cheer up. I'll run out and tell the friends the news."

And he wrung Washington's hand and was about to hurry away when his companion, in a burst of grateful admiration said:

"I think you are the best soul and the noblest I ever knew, Colonel Sellers! and if the people only knew you as I do, you would not be tagging around here a nameless man—you would be in Congress."

The gladness died out of the Colonel's face, and he laid his hand upon Washington's shoulder and said gravely:

"I have always been a friend of your family, Washington, and I think I have always tried to do right as between man and man, according to my lights. Now I don't think there has ever been anything in my conduct that should make you feel Justified in saying a thing like that."

He turned, then, and walked slowly out, leaving Washington abashed and somewhat bewildered. When Washington had presently got his thoughts into line again, he said to himself, "Why, honestly, I only meant to compliment him—indeed I would not have hurt him for the world."

CHAPTER LII.

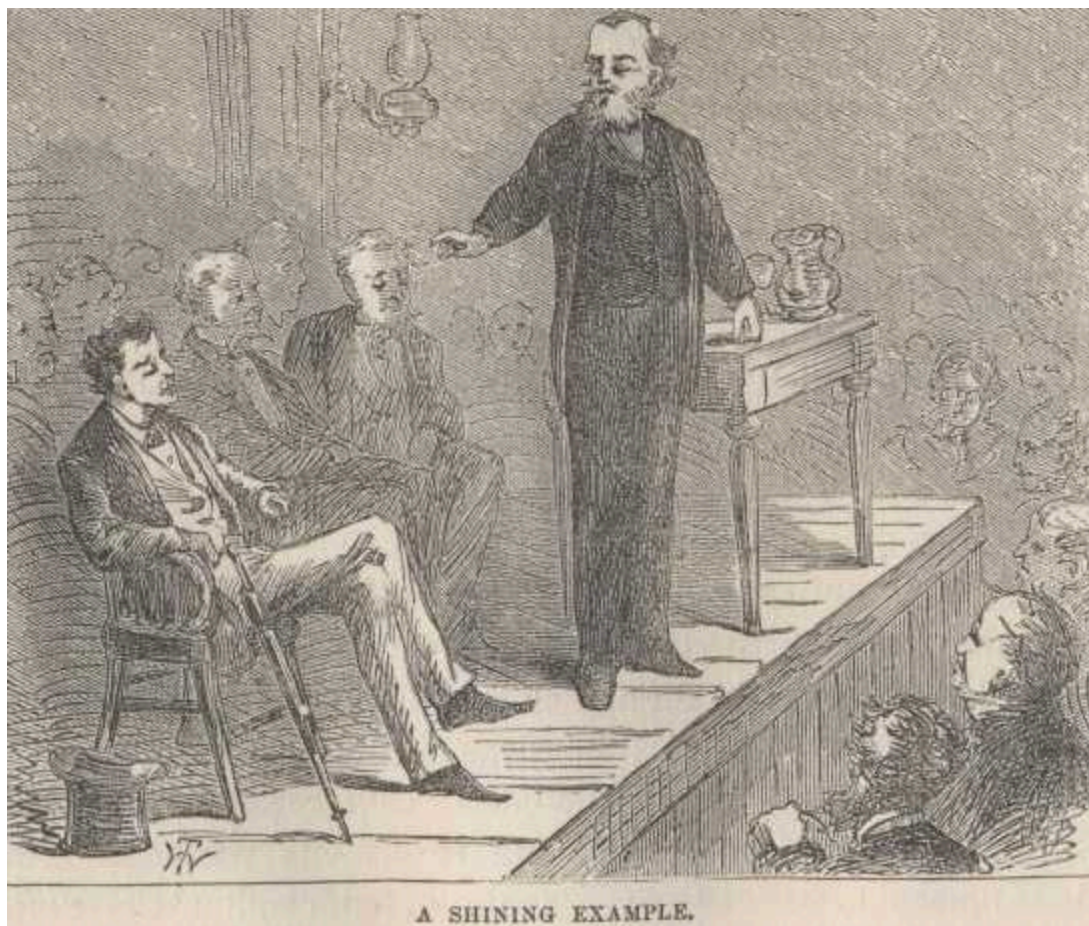
The weeks drifted by monotonously enough, now. The "preliminaries" continued to drag along in Congress, and life was a dull suspense to Sellers and Washington, a weary waiting which might have broken their hearts, maybe, but for the relieving change which they got out of an occasional visit to New York to see Laura. Standing guard in Washington or anywhere else is not an exciting business in time of peace, but standing guard was all that the two friends had to do; all that was needed of them was that they should be on hand and ready for any emergency that might come up. There was no work to do; that was all finished; this was but the second session of the last winter's Congress, and its action on the bill could have but one result—its passage. The house must do its work over again, of course, but the same membership was there to see that it did it.—The Senate was secure—Senator Dilworthy was able to put all doubts to rest on that head. Indeed it was no secret in Washington that a two-thirds vote in the Senate was ready and waiting to be cast for the University bill as soon as it should come before that body.

Washington did not take part in the gaieties of "the season," as he had done the previous winter. He had lost his interest in such things; he was oppressed with cares, now. Senator Dilworthy said to Washington that an humble deportment, under punishment, was best, and that there was but one way in which the troubled heart might find perfect repose and peace. The suggestion found a response in Washington's breast, and the Senator saw the sign of it in his face.

From that moment one could find the youth with the Senator even oftener than with Col. Sellers. When the statesman presided at great temperance meetings, he placed Washington in the front rank of impressive dignitaries that gave tone to the occasion and pomp to the platform. His bald headed surroundings made the youth the more conspicuous.

When the statesman made remarks in these meetings, he not infrequently alluded with effect to the encouraging spectacle of one of the wealthiest and

most brilliant young favorites of society forsaking the light vanities of that butterfly existence to nobly and self-sacrificingly devote his talents and his riches to the cause of saving his hapless fellow creatures from shame and misery here and eternal regret hereafter.



At the prayer meetings the Senator always brought Washington up the aisle on his arm and seated him prominently; in his prayers he referred to him in the cant terms which the Senator employed, perhaps unconsciously, and mistook, maybe, for religion, and in other ways brought him into

notice. He had him out at gatherings for the benefit of the negro, gatherings for the benefit of the Indian, gatherings for the benefit of the heathen in distant lands. He had him out time and again, before Sunday Schools, as an example for emulation. Upon all these occasions the Senator made casual references to many benevolent enterprises which his ardent young friend was planning against the day when the passage of the University bill should make his means available for the amelioration of the condition of the unfortunate among his fellow men of all nations and all climes. Thus as the weeks rolled on Washington grew up, into an imposing lion once more, but a lion that roamed the peaceful fields of religion and temperance, and revisited the glittering domain of fashion no more. A great moral influence was thus brought, to bear in favor of the bill; the weightiest of friends flocked to its standard; its most energetic enemies said it was useless to fight longer; they had tacitly surrendered while as yet the day of battle was not come.

CHAPTER LIII.

The session was drawing toward its close. Senator Dilworthy thought he would run out west and shake hands with his constituents and let them look at him. The legislature whose duty it would be to re-elect him to the United States Senate, was already in session. Mr. Dilworthy considered his re-election certain, but he was a careful, painstaking man, and if, by visiting his State he could find the opportunity to persuade a few more legislators to vote for him, he held the journey to be well worth taking. The University bill was safe, now; he could leave it without fear; it needed his presence and his watching no longer. But there was a person in his State legislature who did need watching—a person who, Senator Dilworthy said, was a narrow, grumbling, uncomfortable malcontent—a person who was stolidly opposed to reform, and progress and him,—a person who, he feared, had been bought with money to combat him, and through him the commonwealth's welfare and its politics' purity.

"If this person Noble," said Mr. Dilworthy, in a little speech at a dinner party given him by some of his admirers, "merely desired to sacrifice me.—I would willingly offer up my political life on the altar of my dear State's weal, I would be glad and grateful to do it; but when he makes of me but a cloak to hide his deeper designs, when he proposes to strike through me at the heart of my beloved State, all the lion in me is roused—and I say here I stand, solitary and alone, but unflinching, unquailing, thrice armed with my sacred trust; and whoso passes, to do evil to this fair domain that looks to me for protection, must do so over my dead body."

He further said that if this Noble were a pure man, and merely misguided, he could bear it, but that he should succeed in his wicked designs through, a base use of money would leave a blot upon his State which would work untold evil to the morals of the people, and that he would not suffer; the public morals must not be contaminated. He would seek this man Noble; he would argue, he would persuade, he would appeal to his honor.

When he arrived on the ground he found his friends unterrified; they were standing firmly by him and were full of courage. Noble was working hard, too, but matters were against him, he was not making much progress. Mr. Dilworthy took an early opportunity to send for Mr. Noble; he had a midnight interview with him, and urged him to forsake his evil ways; he begged him to come again and again, which he did. He finally sent the man away at 3 o'clock one morning; and when he was gone, Mr. Dilworthy said to himself,

"I feel a good deal relieved, now, a great deal relieved."

The Senator now turned his attention to matters touching the souls of his people. He appeared in church; he took a leading part in prayer meetings; he met and encouraged the temperance societies; he graced the sewing circles of the ladies with his presence, and even took a needle now and then and made a stitch or two upon a calico shirt for some poor Bibleless pagan of the South Seas, and this act enchanted the ladies, who regarded the garments thus honored as in a manner sanctified. The Senator wrought in Bible classes, and nothing could keep him away from the Sunday Schools—neither sickness nor storms nor weariness. He even traveled a tedious thirty miles in a poor little rickety stagecoach to comply with the desire of the miserable hamlet of Cattleville that he would let its Sunday School look upon him.



All the town was assembled at the stage office when he arrived, two bonfires were burning, and a battery of anvils was popping exultant broadsides; for a United States Senator was a sort of god in the understanding of these people who never had seen any creature mightier than a county judge. To them a United States Senator was a vast, vague colossus, an awe inspiring unreality.

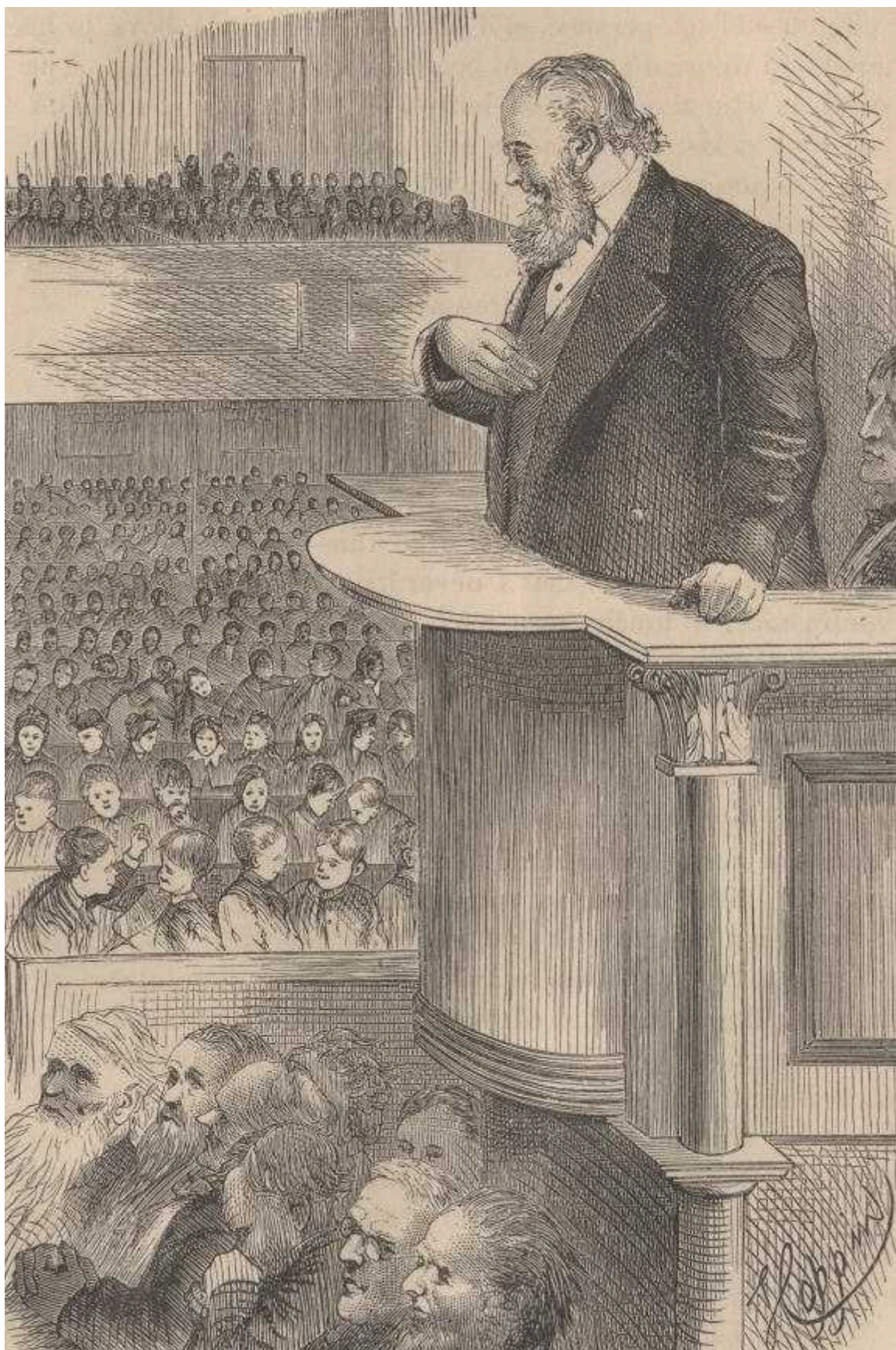
Next day everybody was at the village church a full half hour before time for Sunday School to open; ranchmen and farmers had come with their families from five miles around, all eager to get a glimpse of the great man—the man who had been to Washington; the man who had seen the President of the United States, and had even talked with him; the man who

had seen the actual Washington Monument—perhaps touched it with his hands.

When the Senator arrived the Church was crowded, the windows were full, the aisles were packed, so was the vestibule, and so indeed was the yard in front of the building. As he worked his way through to the pulpit on the arm of the minister and followed by the envied officials of the village, every neck was stretched and, every eye twisted around intervening obstructions to get a glimpse. Elderly people directed each other's attention and, said, "There! that's him, with the grand, noble forehead!" Boys nudged each other and said, "Hi, Johnny, here he is, there, that's him, with the peeled head!"

The Senator took his seat in the pulpit, with the minister' on one side of him and the Superintendent of the Sunday School on the other. The town dignitaries sat in an impressive row within the altar railings below. The Sunday School children occupied ten of the front benches. dressed in their best and most uncomfortable clothes, and with hair combed and faces too clean to feel natural. So awed were they by the presence of a living United States Senator, that during three minutes not a "spit ball" was thrown. After that they began to come to themselves by degrees, and presently the spell was wholly gone and they were reciting verses and pulling hair.

The usual Sunday School exercises were hurried through, and then the minister, got up and bored the house with a speech built on the customary Sunday School plan; then the Superintendent put in his oar; then the town dignitaries had their say. They all made complimentary reference to "their friend the, Senator," and told what a great and illustrious man he was and what he had done for his country and for religion and temperance, and exhorted the little boys to be good and diligent and try to become like him some day. The speakers won the deathless hatred of the house by these delays, but at last there was an end and hope revived; inspiration was about to find utterance.



Senator Dilworthy rose and beamed upon the assemblage for a full minute in silence. Then he smiled with an access of sweetness upon the children and began:

"My little friends—for I hope that all these bright-faced little people are my friends and will let me be their friend—my little friends, I have traveled much, I have been in many cities and many States, everywhere in our great and noble country, and by the blessing of Providence I have been permitted to see many gatherings like this—but I am proud, I am truly proud to say that I never have looked upon so much intelligence, so much grace, such sweetness of disposition as I see in the charming young countenances I see before me at this moment. I have been asking myself as I sat here, Where am I? Am I in some far-off monarchy, looking upon little princes and princesses? No. Am I in some populous centre of my own country, where the choicest children of the land have been selected and brought together as at a fair for a prize? No. Am I in some strange foreign clime where the children are marvels that we know not of? No. Then where am I? Yes—where am I? I am in a simple, remote, unpretending settlement of my own dear State, and these are the children of the noble and virtuous men who have made me what I am! My soul is lost in wonder at the thought! And I humbly thank Him to whom we are but as worms of the dust, that he has been pleased to call me to serve such men! Earth has no higher, no grander position for me. Let kings and emperors keep their tinsel crowns, I want them not; my heart is here!

"Again I thought, Is this a theatre? No. Is it a concert or a gilded opera? No. Is it some other vain, brilliant, beautiful temple of soul-staining amusement and hilarity? No. Then what is it? What did my consciousness reply? I ask you, my little friends, What did my consciousness reply? It replied, It is the temple of the Lord! Ah, think of that, now. I could hardly keep the tears back, I was so grateful. Oh, how beautiful it is to see these ranks of sunny little faces assembled here to learn the way of life; to learn to be good; to learn to be useful; to learn to be pious; to learn to be great

and glorious men and women; to learn to be props and pillars of the State and shining lights in the councils and the households of the nation; to be bearers of the banner and soldiers of the cross in the rude campaigns of life, and raptured souls in the happy fields of Paradise hereafter.

"Children, honor your parents and be grateful to them for providing for you the precious privileges of a Sunday School.

"Now my dear little friends, sit up straight and pretty—there, that's it—and give me your attention and let me tell you about a poor little Sunday School scholar I once knew.—He lived in the far west, and his parents were poor. They could not give him a costly education; but they were good and wise and they sent him to the Sunday School. He loved the Sunday School. I hope you love your Sunday School—ah, I see by your faces that you do! That is right!

"Well, this poor little boy was always in his place when the bell rang, and he always knew his lesson; for his teachers wanted him to learn and he loved his teachers dearly. Always love your teachers, my children, for they love you more than you can know, now. He would not let bad boys persuade him to go to play on Sunday. There was one little bad boy who was always trying to persuade him, but he never could.

"So this poor little boy grew up to be a man, and had to go out in the world, far from home and friends to earn his living. Temptations lay all about him, and sometimes he was about to yield, but he would think of some precious lesson he learned in his Sunday School a long time ago, and that would save him. By and by he was elected to the legislature—Then he did everything he could for Sunday Schools. He got laws passed for them; he got Sunday Schools established wherever he could.

"And by and by the people made him governor—and he said it was all owing to the Sunday School.

"After a while the people elected him a Representative to the Congress of the United States, and he grew very famous.—Now temptations assailed him on every hand. People tried to get him to drink wine; to dance, to go to theatres; they even tried to buy his vote; but no, the memory of his Sunday School saved him from all harm; he remembered the fate of the bad little

boy who used to try to get him to play on Sunday, and who grew up and became a drunkard and was hanged. He remembered that, and was glad he never yielded and played on Sunday.

"Well, at last, what do you think happened? Why the people gave him a towering, illustrious position, a grand, imposing position. And what do you think it was? What should you say it was, children? It was Senator of the United States! That poor little boy that loved his Sunday School became that man. That man stands before you! All that he is, he owes to the Sunday School.

"My precious children, love your parents, love your teachers, love your Sunday School, be pious, be obedient, be honest, be diligent, and then you will succeed in life and be honored of all men. Above all things, my children, be honest. Above all things be pure-minded as the snow. Let us join in prayer."

When Senator Dilworthy departed from Cattleville, he left three dozen boys behind him arranging a campaign of life whose objective point was the United States Senate.

When he arrived at the State capital at midnight Mr. Noble came and held a three-hours' conference with him, and then as he was about leaving said:

"I've worked hard, and I've got them at last. Six of them haven't got quite back-bone enough to slew around and come right out for you on the first ballot to-morrow; but they're going to vote against you on the first for the sake of appearances, and then come out for you all in a body on the second—I've fixed all that! By supper time to-morrow you'll be re-elected. You can go to bed and sleep easy on that."

After Mr. Noble was gone, the Senator said:

"Well, to bring about a complexion of things like this was worth coming West for."



CHAPTER LIV.

The case of the State of New York against Laura Hawkins was finally set down for trial on the 15th day of February, less than a year after the shooting of George Selby.

If the public had almost forgotten the existence of Laura and her crime, they were reminded of all the details of the murder by the newspapers, which for some days had been announcing the approaching trial. But they had not forgotten. The sex, the age, the beauty of the prisoner; her high social position in Washington, the unparalleled calmness with which the crime was committed had all conspired to fix the event in the public mind, although nearly three hundred and sixty-five subsequent murders had occurred to vary the monotony of metropolitan life.

No, the public read from time to time of the lovely prisoner, languishing in the city prison, the tortured victim of the law's delay; and as the months went by it was natural that the horror of her crime should become a little indistinct in memory, while the heroine of it should be invested with a sort of sentimental interest. Perhaps her counsel had calculated on this. Perhaps it was by their advice that Laura had interested herself in the unfortunate criminals who shared her prison confinement, and had done not a little to relieve, from her own purse, the necessities of some of the poor creatures. That she had done this, the public read in the journals of the day, and the simple announcement cast a softening light upon her character.

The court room was crowded at an early hour, before the arrival of judges, lawyers and prisoner. There is no enjoyment so keen to certain minds as that of looking upon the slow torture of a human being on trial for life, except it be an execution; there is no display of human ingenuity, wit and power so fascinating as that made by trained lawyers in the trial of an important case, nowhere else is exhibited such subtlety, acumen, address, eloquence.

All the conditions of intense excitement meet in a murder trial. The awful issue at stake gives significance to the lightest word or look. How the quick eyes of the spectators rove from the stolid jury to the keen lawyers, the impassive judge, the anxious prisoner. Nothing is lost of the sharp wrangle of the counsel on points of law, the measured decision's of the bench; the duels between the attorneys and the witnesses. The crowd sways with the rise and fall of the shifting, testimony, in sympathetic interest, and hangs upon the dicta of the judge in breathless silence. It speedily takes sides for or against the accused, and recognizes as quickly its favorites among the lawyers. Nothing delights it more than the sharp retort of a witness and the discomfiture of an obnoxious attorney. A joke, even if it be a lame, one, is no where so keenly relished or quickly applauded as in a murder trial.

Within the bar the young lawyers and the privileged hangers-on filled all the chairs except those reserved at the table for those engaged in the case. Without, the throng occupied all the seats, the window ledges and the standing room. The atmosphere was already something horrible. It was the peculiar odor of a criminal court, as if it were tainted by the presence, in different persons, of all the crimes that men and women can commit.

There was a little stir when the Prosecuting Attorney, with two assistants, made his way in, seated himself at the table, and spread his papers before him. There was more stir when the counsel of the defense appeared. They were Mr. Braham, the senior, and Mr. Quiggle and Mr. O'Keefe, the juniors.

Everybody in the court room knew Mr. Braham, the great criminal lawyer, and he was not unaware that he was the object of all eyes as he moved to his place, bowing to his friends in the bar. A large but rather spare man, with broad shoulders and a massive head, covered with chestnut curls which fell down upon his coat collar and which he had a habit of shaking as a lion is supposed to shake his mane. His face was clean shaven, and he had a wide mouth and rather small dark eyes, set quite too near together: Mr. Braham wore a brown frock coat buttoned across his breast, with a rose-bud in the upper buttonhole, and light pantaloons. A diamond stud was seen to flash from his bosom; and as he seated himself and drew off his gloves a heavy seal ring was displayed upon his white left hand. Mr. Braham having seated himself, deliberately surveyed the entire house, made a remark to one of his assistants, and then taking an ivory-handled knife from his pocket

began to pare his finger nails, rocking his chair backwards and forwards slowly.

A moment later Judge O'Shaunnessy entered at the rear door and took his seat in one of the chairs behind the bench; a gentleman in black broadcloth, with sandy hair, inclined to curl, a round; reddish and rather jovial face, sharp rather than intellectual, and with a self-sufficient air. His career had nothing remarkable in it. He was descended from a long line of Irish Kings, and he was the first one of them who had ever come into his kingdom—the kingdom of such being the city of New York. He had, in fact, descended so far and so low that he found himself, when a boy, a sort of street Arab in that city; but he had ambition and native shrewdness, and he speedily took to boot-polishing, and newspaper hawking, became the office and errand boy of a law firm, picked up knowledge enough to get some employment in police courts, was admitted to the bar, became a rising young politician, went to the legislature, and was finally elected to the bench which he now honored. In this democratic country he was obliged to conceal his royalty under a plebeian aspect. Judge O'Shaunnessy never had a lucrative practice nor a large salary but he had prudently laid away money—believing that a dependant judge can never be impartial—and he had lands and houses to the value of three or four hundred thousand dollars. Had he not helped to build and furnish this very Court House? Did he not know that the very "spittoon" which his judgeship used cost the city the sum of one thousand dollars?



As soon as the judge was seated, the court was opened, with the "oi yis, oi yis" of the officer in his native language, the case called, and the sheriff was directed to bring in the prisoner. In the midst of a profound hush Laura entered, leaning on the arm of the officer, and was conducted to a seat by her counsel. She was followed by her mother and by Washington Hawkins, who were given seats near her.



Laura was very pale, but this pallor heightened the lustre of her large eyes and gave a touching sadness to her expressive face. She was dressed in simple black, with exquisite taste, and without an ornament. The thin lace veil which partially covered her face did not so much conceal as heighten her beauty. She would not have entered a drawing room with more self-poise, nor a church with more haughty humility. There was in her manner or face neither shame nor boldness, and when she took her seat in full view of

half the spectators, her eyes were downcast. A murmur of admiration ran through the room. The newspaper reporters made their pencils fly. Mr. Braham again swept his eyes over the house as if in approval. When Laura at length raised her eyes a little, she saw Philip and Harry within the bar, but she gave no token of recognition.

The clerk then read the indictment, which was in the usual form. It charged Laura Hawkins, in effect, with the premeditated murder of George Selby, by shooting him with a pistol, with a revolver, shotgun, rifle, repeater, breech-loader, cannon, six-shooter, with a gun, or some other, weapon; with killing him with a slung-shot, a bludgeon, carving knife, bowie knife, pen knife, rolling pin, car, hook, dagger, hair pin, with a hammer, with a screw-driver; with a nail, and with all other weapons and utensils whatsoever, at the Southern hotel and in all other hotels and places wheresoever, on the thirteenth day of March and all other days of the Christian era wheresoever.

Laura stood while the long indictment was read; and at the end, in response to the inquiry, of the judge, she said in a clear, low voice; "Not guilty." She sat down and the court proceeded to impanel a jury.

The first man called was Michael Lanigan, saloon keeper.



"Have you formed or expressed any opinion on this case, and do you know any of the parties?"

"Not any," said Mr. Lanigan.

"Have you any conscientious objections to capital punishment?"

"No, sir, not to my knowledge."

"Have you read anything about this case?"

"To be sure, I read the papers, y'r Honor."

Objected to by Mr. Braham, for cause, and discharged.

Patrick Coughlin.



"What is your business?"

"Well—I haven't got any particular business."

"Haven't any particular business, eh? Well, what's your general business? What do you do for a living?"

"I own some terriers, sir."

"Own some terriers, eh? Keep a rat pit?"

"Gentlemen comes there to have a little sport. I never fit 'em, sir."

"Oh, I see—you are probably the amusement committee of the city council. Have you ever heard of this case?"

"Not till this morning, sir."

"Can you read?"

"Not fine print, y'r Honor."

The man was about to be sworn, when Mr. Braham asked,

"Could your father read?"

"The old gentleman was mighty handy at that, sir."

Mr. Braham submitted that the man was disqualified Judge thought not. Point argued. Challenged peremptorily, and set aside.

Ethan Dobb, cart-driver.



"Can you read?"

"Yes, but haven't a habit of it."

"Have you heard of this case?"

"I think so—but it might be another. I have no opinion about it."

Dist. A. "Tha—tha—there! Hold on a bit? Did anybody tell you to say you had no opinion about it?"

"N—n—o, sir."

Take care now, take care. Then what suggested it to you to volunteer that remark?"

"They've always asked that, when I was on juries."

All right, then. Have you any conscientious scruples about capital punishment?"

"Any which?"

"Would you object to finding a person guilty—of murder on evidence?"

"I might, sir, if I thought he wan't guilty."

The district attorney thought he saw a point.

"Would this feeling rather incline you against a capital conviction?"

The juror said he hadn't any feeling, and didn't know any of the parties. Accepted and sworn.

Dennis Lafin, laborer. Have neither formed nor expressed an opinion. Never had heard of the case. Believed in hangin' for them that deserved it. Could read if it was necessary.

Mr. Braham objected. The man was evidently bloody minded. Challenged peremptorily.

Larry O'Toole, contractor. A showily dressed man of the style known as "vulgar genteel," had a sharp eye and a ready tongue. Had read the newspaper reports of the case, but they made no impression on him. Should be governed by the evidence. Knew no reason why he could not be an impartial juror.

Question by District Attorney.

"How is it that the reports made no impression on you?"

"Never believe anything I see in the newspapers."

(Laughter from the crowd, approving smiles from his Honor and Mr. Braham.) Juror sworn in. Mr. Braham whispered to O'Keefe, "that's the man."

Avery Hicks, pea-nut peddler. Did he ever hear of this case? The man shook his head.



"Can you read?"

"No." "Any scruples about capital punishment?"

"No."

He was about to be sworn, when the district attorney turning to him carelessly, remarked,

"Understand the nature of an oath?"

"Outside," said the man, pointing to the door.

"I say, do you know what an oath is?"

"Five cents," explained the man.

"Do you mean to insult me?" roared the prosecuting officer. "Are you an idiot?"

"Fresh baked. I'm deefe. I don't hear a word you say."

The man was discharged. "He wouldn't have made a bad juror, though," whispered Braham. "I saw him looking at the prisoner sympathizingly. That's a point you want to watch for."

The result of the whole day's work was the selection of only two jurors. These however were satisfactory to Mr. Braham. He had kept off all those he did not know. No one knew better than this great criminal lawyer that the battle was fought on the selection of the jury. The subsequent examination of witnesses, the eloquence expended on the jury are all for effect outside. At least that is the theory of Mr. Braham. But human nature is a queer thing, he admits; sometimes jurors are unaccountably swayed, be as careful as you can in choosing them.

It was four weary days before this jury was made up, but when it was finally complete, it did great credit to the counsel for the defence. So far as Mr. Braham knew, only two could read, one of whom was the foreman, Mr. Braham's friend, the showy contractor. Low foreheads and heavy faces they all had; some had a look of animal cunning, while the most were only stupid. The entire panel formed that boasted heritage commonly described as the "bulwark of our liberties."

The District Attorney, Mr. McFlinn, opened the case for the state. He spoke with only the slightest accent, one that had been inherited but not cultivated. He contented himself with a brief statement of the case. The state would prove that Laura Hawkins, the prisoner at the bar, a fiend in the form of a beautiful woman, shot dead George Selby, a Southern gentleman, at the, time and place described. That the murder was in cold blood, deliberate and without provocation; that it had been long premeditated and threatened; that she had followed the deceased from Washington to commit it. All this would be proved by unimpeachable witnesses. The attorney added that the duty of the jury, however painful it might be, would be plain and simple. They were citizens, husbands, perhaps fathers. They knew how insecure life had become in the metropolis. Tomorrow our own wives might be widows, their own children orphans, like the bereaved family in yonder hotel, deprived of husband and father by the jealous hand of some murderous female. The attorney sat down, and the clerk called?"

"Henry Brierly."

*** END OF THE PROJECT GUTENBERG EBOOK THE GILDED
AGE, PART 6. ***

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